

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.,
COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

CMI DISTRIBUTION, INC.'S PETITION FOR ATTORNEY'S FEES

Pursuant to 46 U.S.C. § 41305 and 46 CFR § 502.254, Complainant CMI Distribution Inc. ("CMI") submits its Petition seeking reasonable attorney's fees as the prevailing party in this proceeding.

I. INTRODUCTION

On May 24, 2019, the Presiding Judge entered an Initial Decision awarding reparations to Complainant CMI. On July 26, 2021, the Commission issued an order affirming-in-part and reversing in-part the Presiding Judge's Initial Decision, ultimately finding that Respondent Service by Air, Inc. ("SBA") had violated the Shipping Act of 1984 and awarded reparations to CMI in the amount of \$120,083.59.

Section 41301(a) provides that a party may file a sworn complaint with the Federal Maritime Commission ("FMC" or "Commission") alleging a violation of the Shipping Act. It further provides, that in any complaint proceeding brought under 46 U.S.C. § 41301 (section 11(a)-(b) of the Shipping Act of 1984), the Commission, upon petition, may award the prevailing party

reasonable attorney's fees. 46 C.F.R. § 502.254(a). To obtain an award of attorney's fees a prevailing party must (1) file a petition within 30 days after a decision has become final; (2) explain why attorney's fees should be awarded; (3) specify the number of hours claimed by each person representing the prevailing party; and (4) include supporting evidence of the reasonableness of the hours claimed and the customary rates charged by attorneys in the community where the person practices. § 502.254(c)(2)(i-iii).

II. CMI IS ELIGIBLE FOR AN AWARD OF ATTORNEY'S FEES

In the Initial Decision, the Presiding Judge found that CMI had "proven by a preponderance of the evidence that Service by Air violated the Shipping Act and that it suffered actual injury as a result of the violations. Therefore, CMI is the prevailing party." *See CMI Distribution Inc. v. Service By Air, Inc.*, FMC Docket No.17-05 (May 24, 2019) ("ALJ Order"). Upon review, the Commission affirmed the Presiding Judge's determination that SBA had violated the Shipping Act and awarded CMI reparations. *CMI Distribution Inc. v. Service By Air, Inc.*, FMC Docket No.17-05 (July 26, 2021) ("FMC Order"). [A] complainant would generally qualify as the 'prevailing party' in a Commission proceeding when the presiding officer awards reparations [to the complainant] or issues a cease and desist order." *See* Docket No.15~06, Final Rule, *Organization and Functions; rules of Practice and Procedure; Attorney Fees*, 34 S.R.R. 80 (March 1, 2016) ("Final Rule"). Accord. *Adenariwo*, 34 S.R.R. at 773 ("Claimants awarded reparations qualify as prevailing parties. Accordingly, Claimant is eligible for attorney fees"). Further, SBA has issued payment for the damages award to CMI.¹ Therefore, the decision is final.

¹ *See* Declaration of Brendan Collins in Support of CMI Distribution Inc's Petition for Attorney's Fees at ¶ 7.

Accordingly, CMI qualifies as the prevailing party and is eligible to receive an award of attorney's fees. 46 C.F.R. § 502.254(a).

III. AWARD OF ATTORNEYS' FEES IS APPROPRIATE

The Commission has stated that the "primary consideration in determining entitlement to attorney's fees is whether such an award is consistent with the purposes of the Shipping Act, and any factors the Commission relies upon in individual cases should be consistent with these purposes." Final Rule, 81 Fed. Reg. at 10,509. The Commission has listed a number of factors in determining whether a party is entitled to attorney's fees: frivolousness, objective unreasonableness (in the factual and legal components of a case), motivation, and in certain circumstances to promote considerations of deterrence. *Edaf Antillas, Inc. v. Crowley Caribbean Logistics*, Docket No. 14-04, at 9 (FMC 2016).

Here, CMI filed a complaint at the Federal Maritime Commission ("FMC") alleging Shipping Act violations by Service By Air ("SBA") based upon, *inter alia*, its deceptive, unfair, and fraudulent billing practices and its charging of freight and associated rates not in compliance with the rates, charges, classifications, rules, and practices contained in a tariff published in accordance with the Shipping Act of 1984 and Commission regulations.

The proceeding lasted for approximately four years and resulted in CMI accruing attorney's fees in the amount of \$167,921.25. On May 24, 2019, the Presiding Judge issued its Initial Decision in favor of CMI. Upon review by the Commission, it affirmed that SBA unlawfully acted as an unlicensed non-vessel operating common carrier ("NVOCC") and inappropriately charged CMI accessorial charges (e.g., demurrage, detention, etc.) without a published tariff. In so holding, it awarded CMI reparations in the amount of \$120,083.59.

After deducting attorney's fees, however, CMI is in no better position than it had been if it had never pursued SBA for its Shipping Act violations. As noted by the Commission:

The Shipping Act is intended not only to ensure a non-discriminatory process for the common carriage of goods, but also to provide and promote an efficient, competitive, and economic ocean transportation system. These later goals are furthered by encouraging the industry to continue to develop new ways of improving ocean transportation. *In order to promote such improvements and assist the industry in evaluating potential option, it is important the boundary between legal and illegal conduct be demarcated as clearly as possible.*

Docket No. 15-06, *Final Rule, Organization and Functions; rules of Practice and Procedure; Attorney Fees* ("Final Rule"), 34 S.R.R. 80, 89-90 (emphasis added).

Currently, without an award of attorney's fees there is no deterrence value in the reparations awarded to CMI and would likely discourage other similarly situated shippers from pursuing reparations due to the time and costs associated with pursuing a claim. CMI's attorney's fees incurred were in large part due to the large number of shipments involved, and SBA's deceptive practices throughout the course of the transportation services it provided to CMI, and even during the course of the litigation. As the ALJ and the Commission held, SBA misrepresented that it was providing services pursuant to a tariff that did not exist to obtain CMI's business. In litigation, however, SBA nonetheless insisted, despite ample evidence to the contrary, that it had not held itself out as an NVOCC. FMC Order at 4. It took this unsupported position despite evidence developed by CMI showing that SBA refused to release cargo in its possession until CMI had paid grossly inflated, and in some cases fictional, demurrage charges. Doc. No. 40, CMI Distribution Inc.'s Opening Brief in Support of its Claims Against SBA (Service by Air) at 19-22. Further, despite evidence showing that CMI contracted with Las Freight to transport CMI's cargo from China to the United States by ocean, SBA provided sworn statements that it was never involved in providing ocean transportation. SBA further submitted a sworn Affidavit in Support

of its Motion to Dismiss that it had never represented to CMI that any of the demurrage charges it was collecting was originally charged by a steamship line even though such representations were contained in numerous emails to CMI. *See* Exh. A-6 to Opposition to Motion to Dismiss. SBA also falsely asserted that no VOCC demurrage was ever charged or collected. As a result of SBA's hardball and deceptive tactics, CMI was forced to engage in extensive paper discovery and to take and defend multiple depositions to establish a record supporting the Initial Decision and the Commission's findings.

Quite simply, discovery was lengthy and intensive, and required CMI to review significant amounts of documents and correspondence, and both parties conducted lengthy depositions. Moreover, due to the large number of shipments, and SBA's deceptive record-keeping, (*e.g.*, issuing airway bills for ocean transportation), it took CMI considerable time to parse each shipment and the basis for the charges being billed. CMI also was compelled to retain an expert to confirm that the rates charged CMI were not reflected in any existing tariff.

Moreover, upon the conclusion of discovery, SBA informed CMI that it did not believe mediation would be productive and that it was not open to settlement discussions. As a result, SBA continued to fully litigate the claim and to assert every defense possible, no matter how implausible, all the while refusing to discuss settlement. Because of SBA's refusal to negotiate, CMI was forced to expend considerable time and expense to obtain reparations.

SBA then forced CMI to incur significant additional expenses by filing exceptions to the Initial Decision to the Commission, which affirmed in large part the Initial Decision. SBA did so despite the fact that the Initial Decision was well-reasoned and compelling and despite the fact that the Commission itself deemed SBA's arguments "unpersuasive." *See* FMC Order at 10. In

pursuing the appeal, SBA continued to exercise its significant financial advantage over CMI in the hopes that it would deter CMI from seeking to enforce its legal remedies.

For CMI to be made whole, an award of attorney's fees is appropriate and in line with the purpose of the Shipping Act, and FMC precedent. In *Grunenberg-Reisner v. Overseas Moving Specialist Inc. d/b/a International Seas and Air Shipping*, Informal Docket No. 1947(I), (SCO November 3, 2017), Claimants were awarded reparations in the amount of \$15,505.61, the proceeding lasted approximately three years and resulted in \$11,060. There the small claims officer ("SCO") found that without an award of attorney's fees Complainant's net recovery would only be \$4,445.61, which was not sufficient to make Complainant whole. Accordingly, the SCO determined that an award of attorney's fees "'advances considerations of compensation and deterrence,' an important factor to consider (*see Baltic Auto Shipping* at 17; *Adenariwo*, 34 S.R.R. at 773), by adequately compensating Claimants for their injury caused by a Shipping Act violation and deterring future violations of the Shipping Act by encouraging victims of Shipping Act violations to bring claims against the violators." *Grunenberg-Resiner* at 15.

Moreover, the current matter is distinct from *Baltic Auto Shipping Inc., v. Michael Hitrinov a/k/a Michael Khitrinov and Empire United Lines Co. Inc.*, FMC No. 14- 16 (FMC Oct. 25, 2017), where Respondent was denied an award of attorney's fees—although they were found eligible as a prevailing party—because the claim was not determined based on its merits and was dismissed based on statute of limitations grounds. Here, CMI established that SBA had violated the Shipping Act but did so at great expense to CMI. Therefore, an award of attorney's fees is appropriate as it is consistent with the purpose of the Shipping Act and public policy, as it would act as a deterrent to potential future violations and encourages similarly situated shippers to pursue reparations. *See CMI Distribution Inc. v. Service By Air, Inc.*, FMC Docket No.17-05 (July 26, 2021) (*Citing*

Worldwide Relocations —Possible Violations of the Shipping Act, FMC Docket No. 06-01, 2012 FMC LEXIS 23, 2, *14, *23 (FMC Mar. 15, 2012) (“The Commission has a strong public policy interest in protecting consumers and the shipping public” and ensuring that shippers only entrust their cargo to registered NVOCCs.”); *Hensley v. Eckerhart*, 46 1 U.S. 424,433 (1983) (courts “should focus on the significance of the overall relief obtained by the plaintiff in relation to the hours reasonably expended on the litigation”).

Finally, the Commission has held that an award of attorney’s fees in excess of the reparations awarded is reasonable based on other factors. *See e.g. Bernard & Weldcraft Welding Equip. v. Supertrans Intermodal, Inc.*, FMC Docket No. 02-12 at 27 (January 8, 2003)(finding an award of attorney’s fees in excess of reparations appropriate “B & W has helped the Commission enforce the Shipping Act, which is an objective that serves the public interest.”); *see also City of Riverside v. Rivera*, 477 U.S. 561 (1961)(finding that attorney’s fee award was not required to be proportionate to amount of damages plaintiffs actually recovered).

Thus, an award of attorney’s fees is appropriate as it is in line with prior FMC precedent and is consistent with the purposes of the Shipping and public policy.

IV. CALCULATION OF FEES

The FMC has based an award of attorney’s fees on the “lodestar” method, which determines reasonable attorney’s fees by multiplying the hours worked by the customary attorney’s rates in the particular community for the type of work performed. *Attorney ‘s Fees in Reparation Proceedings*, 23 S.R.R. 1698 (1987). In accordance with 46 CFR § 502.254(d)(ii), invoices attached as Exhibit A (Exh. A), specify the number of hours claimed at each identifiable stage of the proceeding and the hours claimed by each attorney representing CMI. The invoices are separated into seven major categories and reflect the rates and time charged by GKG Law, P.C.

1. Initial Proceeding - 04/03/2017 to 06/25/2017

Hours claimed by attorney:

- a. Brendan Collins: 31.5 hours
- b. David Street: 1 hour
- c. Kristine Little: 1 hour

2. Motion to Dismiss - 06/26/2017 to 10/06/2017

Hours claimed by attorney:

- a. Brendan Collins: 37 hours
- b. David Street: 14.1 hours
- c. Kristine Little: 28.2 hours

3. Discovery - 10/07/2017 to 03/12/2018

Hours claimed by attorney:

- a. Brendan Collins: 97.3
- b. David Street: 16.2
- c. Kristine Little: 69.9

4. Briefing Stage - 3/13/2018 to 7/09/2018

Hours claimed by attorney:

- a. Brendan Collins: 110.7
- b. David Street: 43.1
- c. Kristine Little: 92.7

5. Response to SBA's Supplemental Memorandum - 2/05/2019 to 2/08/2019

Hours claimed by attorney:

- a. Brendan Collins: 0.8
- b. Kristine Little: 0.4

6. Initial Decision and Responses to SBA's Exceptions - 04/23/2019 to 08/02/2019

Hours claimed by attorney

- a. Brendan Collins: 17.0
- b. Kristine Little: 24.8

7. Preparation of Petition for Attorney's Fees - 07/26/2021 to 08/18/2021²

Hours claimed by attorney:

- a. Brendan Collins: 7.4
- b. Kristine Little: 19.4

² The Commission and the Courts have included time spent preparing a fee petition in an award for attorney's fees. *See Edaf Antillas, Inc. v. Crowley Caribbean Logistics*, Docket No. 14-04, at 9 (FMC 2016); *Clark v. City of Los Angeles*, 803 F.2d 987, 992 (9th Cir. 1986); *Kerns v. Consolidation Coal Co.*, 247 F.3d 133 (4th Cir. 2001).

The Declaration of Brendan Collins, in support of CMI's petition for Attorney's fees, addresses the reasonableness of hours claimed and the customary fees charged by Attorneys. 46 CFR § 502.254(d)(iii). The hourly rates charged by GKG Law in this matter are well below its customary hourly rates and well below the standard hourly rates for transportation law firm's with GKG's experience and expertise.³ GKG Law offered these significantly discounted rates in recognition of the fact that CMI could not seek to enforce its rights and deter the Shipping Act violations at issue absent such a discount.

V. RELIEF REQUESTED

CMI respectfully requests the following relief:

1. Attorney's fees incurred in this matter since April, 2017, as provided in 46 U.S.C. § 41305 and 46 CFR § 502.254, in the amount of \$162,921.25, and expert witness fees in the amount of 5,000.
2. Such other and further relief as the Commission and the Presiding Judge deem just and proper.

Respectfully Submitted,



Brendan Collins
Kristine O. Little
GKG LAW, P.C.
1055 Thomas Jefferson Street, NW
Suite 500
Washington, DC 20007
Telephone: (202) 342-6793
Facsimile: (202) 342-5219
bcollins@gkglaw.com

Dated: August 19, 2021

Attorneys for CMI Distribution, Inc.

³ See attached Exhibit B, Laffey Matrix. The Laffey Matrix provides billing rates for attorneys in the Washington, DC market with various degrees of experience. *Interfaith Community Organization v. Honeywell International, Inc.*, 426 F.3d 694, 708 (3d Cir. 2005).

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AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

**DECLARATION OF BRENDAN COLLINS IN SUPPORT OF CMI DISTRIBUTION
INC.'S PETITION FOR ATTORNEY'S FEES**

1. My name is Brendan Collins. I am a principal at the law firm GKG Law, P.C. ("GKG"), attorneys for Complainant CMI Distribution, Inc. ("CMI").

2. I am the lead attorney for CMI in this matter and performed the majority of the legal work on this matter. As a result, I have knowledge of all the work done in this matter and the hourly rates charged by GKG.

3. I am the billing attorney for this matter and edited all the invoices submitted to CMI, including deleting and/or reducing time as appropriate.

4. I am a graduate of the George Washington University National Law Center and have been a practicing attorney for 35 years. I have practiced maritime law for over 15 years, representing shippers, ocean transportation intermediaries, and other regulated entities. I have participated in multiple proceedings before the Federal Maritime Commission, including *Mitsui v. Global Link Logistics*, FMC Docket No. 09-01 (FMC 2014); *Petra Pet, Inc. v. Panda Logistics*

Ltd., Panda Logistics Co. Ltd., and RMD Solutions, Inc., FMC Docket No. 11-14 (FMC 2014); *World Imports, Ltd. v. OEC Group New York*, FMC Docket No. 16-15. Because CMI was financially stressed at the time GKG was retained, GKG agreed to reduce its normal hourly rates for the legal services provided to CMI. Specifically, my partner, David Street and I reduced our hourly rates from \$530 per hour and \$525 per hour respectively in 2017 to \$275 per hour. Although my hourly rates subsequently increased to \$550 per hour, my hourly rates for legal services provided to CMI have remained unchanged.

5. David Street performed work in this matter, until he retired in December 2018. Mr. Street is a graduate of the Georgetown University Law Center. Prior to retirement, Mr. Street had been a practicing attorney for 42 years, and a well-recognized expert in the field of maritime law. Mr. Street participated in multiple proceedings before the FMC, including *Mitsui v. Global Link Logistics*, FMC Docket No. 09-01 (FMC 2014); *Petra Pet, Inc. v. Panda Logistics Ltd., Panda Logistics Co. Ltd., and RMD Solutions, Inc.*, FMC Docket No. 11-14 (FMC 2014). Although David Street's hourly rates increased to \$ 550 per hour prior to his retirement in 2018, his rates remained unchanged for the duration of this matter.

6. Kristine Little also performed work in this matter. Ms. Little is a graduate of the American University Washington College of Law and has been a practicing attorney for 4 years. Ms. Little has been a member of the D.C. bar since 2017. Initially, Ms. Little began working on this matter as a law clerk. At that time, her rates were \$175 until she was hired full time as an attorney. In 2018, Ms. Little's billing rate was increased to \$275 per hour, although Ms. Little's

standard hourly rate has increased to \$ 375 per hour, her \$275 hourly rate for services provided to CMI has remained unchanged for the duration of this matter.⁴

7. On August 9, 2021, pursuant to the FMC Order, SBA issued payment to CMI in the amount of \$120,083.59.

8. Although the retainer agreement between CMI and GKG permitted GKG to recover a contingency fee of 20% of any recovery in the matter, GKG has not collected a contingency from the \$120,083.59 awarded to CMI pursuant to the FMC Order.

9. In discovery proceedings, CMI was compelled to retain an expert to confirm that the rates charged by SBA were not reflected in any existing tariff. CMI retained Steve Ferreira the founder and principal of Ocean Audit, as an expert on CMI's behalf. Mr. Ferreira has over 34 years of experience in the field of ocean transportation and is intimately familiar with ocean transportation billing, tariff publication, and the Rules and Regulations of the Commission.

10. Mr. Ferreira prepared an expert report and was also deposed by SBA.

11. Mr. Ferreira was paid a \$5,000 retainer by CMI to draft an expert report and to provide expert testimony. (Mr. Ferreira's time spent in being deposed was paid by SBA.)

12. True and correct copies of GKG's invoices to CMI, which show the amount of time spent on this matter and the fees assessed to CMI since April 2017 to present are attached as Exhibit A.

13. The invoices attached as Exhibit A reflect the work performed in this matter.

14. In CMI's initial complaint, it named Las Freight Systems Ltd. ("Las Freight") as a respondent in the matter. In the Initial Decision, the Presiding Judge found that Las Freight had

⁴ Some time entries for Ms. Little in Exhibit A reflect an hourly rate of \$300. Those entries were submitted in error, and the amount of attorney's fees requested in this petition has been adjusted to reflect an hourly rate of \$275 for all attorneys.

not violated the Shipping Act and dismissed CMI's claims against Las Freight. Accordingly, CMI is not seeking attorney's fees for any time spent relating to its claims against Las Freight.

15. Since April 3, 2017, CMI has accrued attorney's fees and expert witness fees in the amount of 167,921.25

16. FMC Regulations requires that an award of attorney's fees cover "the fair market value of the services of any person permitted to appear and practice before the Commission." §502.254(b). The hourly rates charged by GKG in this matter are significantly below rates charged by attorneys with similar skill and experience in Washington, DC. *See* attached Exhibit B, Laffey Matrix. The Laffey Matrix provides billing rates for attorneys in the Washington, DC market with various degrees of experience.⁵ As reflected in Exhibit B, under the Laffey Matrix, the hourly rate for an attorney of Mr. Street and my experience would be \$914 an hour, considerably higher than the \$275 an hour charged to CMI.

17. The Commission has used the Laffey Matrix to determine the reasonableness of attorney rates when awarding attorney fees.⁶

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.



Brendan Collins

Dated: August 19, 2021

⁵ *Interfaith Community Organization v. Honeywell International, Inc.*, 426 F.3d 694, 708 (3d Cir. 2005).

⁶ *Petra Pet, Inc. v. Panda Logistics Ltd., Panda Logistics Co. Ltd., and RMD Solutions, Inc.*, 33 S.R.R. 336, 338 (FMC 2014).

CERTIFICATE OF SERVICE

I do hereby certify that a true and correct copy of the foregoing document was delivered to the parties of record in this proceeding this 19th day of August, 2021.


Brendan Collins

Exhibit A

1. Initial Proceeding - 04/03/2017 to 06/26/2017

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

June 20, 2017

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 106667
Client # 102804
Billing through 5/31/2017

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$8,452.50	\$290.20	\$8,742.70

Current Charges	\$8,742.70
Total Balance Now Due (USD)	<u>\$8,742.70</u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

June 20, 2017

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 106667
Client # 102804
Billing through 5/31/2017

Matter

0999 General Matters

PROFESSIONAL SERVICES			HOURS	RATE	AMOUNT
4/3/2017	BC	Review shipping documents including Las Freight Systems bill of lading.	2.10	275.00	\$577.50
4/13/2017	BC	Review CMI correspondence. Review draft complaint. Communications with Bender.	1.10	275.00	\$302.50
4/14/2017	BC	Review additional CMI materials.	1.10	275.00	\$302.50
4/17/2017	BC	Communication with CMI regarding potential representation. Communication regarding need for additional documents.	0.80	275.00	\$220.00
4/18/2017	BC	Communication with Steve Ferreira regarding CMI claim and whether we can determine validity of demurrage charges. Forward sheet reflecting demurrage charges paid.	0.90	275.00	\$247.50
4/25/2017	BC	Communication with CMI regarding documents. Communications with Steve Ferreira regarding rate audit issues.	0.60	275.00	\$165.00
4/27/2017	BC	Various communications with Steve Ferreira regarding what information can be determined from demurrage sheet provided by client. Review tracking container information provided.	1.10	275.00	\$302.50
4/28/2017	BC	Communications with CMI regarding need for supporting documents. Review SBA documents provided. Communication with Steve Ferreira regarding rate audit issues.	2.30	275.00	\$632.50

5/2/2017	BC	Communications with rate auditor regarding shipping documents and accessing defendants' and underlying carrier's tariffs. Communications and review of MSC's per diem, detention and demurrage provisions. Follow up with client regarding email correspondence with defendants.	2.40	275.00	\$660.00
5/3/2017	BC	Communications regarding accessing tariffs.	0.40	275.00	\$110.00
5/4/2017	BC	Communications regarding tariffs.	0.30	275.00	\$82.50
5/5/2017	BC	Communications regarding SBA Consolidators' tariff provisions governing demurrage.	0.40	275.00	\$110.00
5/10/2017	BC	Draft of complaint Coordination regarding retention.	2.20	275.00	\$605.00
5/10/2017	KOL	Review/analyze CMI documents.	1.00	175.00	\$175.00
5/12/2017	BC	Communications regarding filing of complaint.	0.40	275.00	\$110.00
5/15/2017	BC	Draft complaint. Identification of issues regarding same.	2.30	275.00	\$632.50
5/16/2017	BC	Communications with John Benner regarding documents in their possession. Review of same. Edits to compliation to reflect additional informaton. Draft of discovery requests.	4.50	275.00	\$1,237.50
5/17/2017	BC	Research regarding whether Indirect Air Carrier is deemed as acting as an NVOCC. Edits to draft complaint and edits to draft discovery.	2.10	275.00	\$577.50
5/18/2017	BC	Communications regarding complaint and discovery. Revisions to same.	1.10	275.00	\$302.50
5/19/2017	BC	Review FMC cases regarding whether individual items charged for must be set forth in tariff.	1.60	275.00	\$440.00
5/22/2017	DPS	Review Complaint. Conference with Brendan Collins regarding same.	0.50	275.00	\$137.50
5/22/2017	BC	Communication with client regarding draft complaint and need for verification.	0.50	275.00	\$137.50
5/23/2017	BC	Communication with Maria regarding executed verification statement and production of emails. Filing of complaint.	0.80	275.00	\$220.00
5/31/2017	BC	Review emails forwarded by Maria.	0.60	275.00	\$165.00
Total Fees					<u>\$8,452.50</u>

Timekeeper Summary

		HOURS	AMOUNT
KOL	Little, Kristine O	1.00	\$175.00
BC	Collins, Brendan	29.60	\$8,140.00
DPS	Street, David P.	0.50	\$137.50

EXPENSES

4/25/2017	206	Pacer	\$1.20
5/23/2017	202	Complaint Filing Fee	\$289.00
Total Expenses			<u>\$290.20</u>

Billing Summary for all Matters

Total professional services	\$8,452.50
Total expenses incurred	<u>\$290.20</u>
Total of new charges for this invoice	<u>\$8,742.70</u>
Total balance now due (USD)	<u><u>\$8,742.70</u></u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

July 12, 2017

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 106815
Client # 102804
Billing through 6/30/2017

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$3,135.00	\$0.00	\$3,135.00

Current Charges	\$3,135.00
Balance Forward	\$8,742.70
Total Balance Now Due (USD)	<u><u>\$11,877.70</u></u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

July 12, 2017

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 106815
Client # 102804
Billing through 6/30/2017

Matter

0999 General Matters

Balance forward as of invoice dated: 6/20/2017	\$8,742.70
Payments received since last invoice	\$0.00
Accounts receivable balance brought forward	<u>\$8,742.70</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
6/2/2017	BC	Entry of notice of appearance.	0.20	275.00	\$55.00
6/6/2017	BC	Review Notice of Assignment of Case to Judge Guthridge. Review Judge Guthridge's Initial Order.	0.70	275.00	\$192.50
6/21/2017	BC	Review emails from Maria Vega reflecting communications with Defendants.	1.30	275.00	\$357.50
6/22/2017	BC	Review documents from Maria Vega and Benner documents. identification of knowledgeable employees for Rule 26 disclosure.	1.80	275.00	\$495.00
6/23/2017	DPS	Review SBA emails.	0.50	275.00	\$137.50
6/26/2017	DPS	Review SBA motion to dismiss. Conference with Brendan Collins.	0.20	275.00	\$55.00
6/26/2017	BC	Review motion to dismiss, supporting affidavit and exhibits.	1.30	275.00	\$357.50
6/27/2017	BC	Review motion to dismiss. Research regarding opposition to same.	2.10	275.00	\$577.50
6/28/2017	DPS	Conference with Brendan Collins regarding SBA motion to dismiss.	0.20	275.00	\$55.00
6/28/2017	BC	Draft opposition to motion to dismiss.	3.10	275.00	\$852.50
Total Fees					<u>\$3,135.00</u>

Timekeeper Summary

HOURS

AMOUNT

BC	Collins, Brendan	10.50	\$2,887.50
DPS	Street, David P.	0.90	\$247.50

Billing Summary for all Matters

Total professional services	\$3,135.00
Total expenses incurred	\$0.00
Total of new charges for this invoice	<u>\$3,135.00</u>
Plus net balance forward	<u>\$8,742.70</u>
Total balance now due (USD)	<u><u>\$11,877.70</u></u>

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	106667	6/20/2017	\$8,742.70	\$8,742.70

2. Motion to Dismiss - 06/26/2017 to 10/06/2017

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

August 11, 2017

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 107026
Client # 102804
Billing through 7/31/2017

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$6,382.50	\$664.51	\$7,047.01

Current Charges	\$7,047.01
Balance Forward	\$8,877.70
Total Balance Now Due (USD)	<u><u>\$15,924.71</u></u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

August 11, 2017

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 107026
Client # 102804
Billing through 7/31/2017

Matter

0999 General Matters

Balance forward as of invoice dated: 7/12/2017	\$11,877.70
Payments received since last invoice	\$3,000.00
Accounts receivable balance brought forward	<u>\$8,877.70</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
7/3/2017	DPS	Conference with Brendan Collins regarding SBA air waybills.	0.10	275.00	\$27.50
7/3/2017	BC	Review SBA Opposition to Motion to Dismiss. Communication with client regarding same.	2.30	275.00	\$632.50
7/3/2017	KOL	Research pertaining to bills of lading.	1.20	175.00	\$210.00
7/5/2017	DPS	Review documents. Conference with Brendan Collins regarding same. Review Response to Motion to Dismiss.	2.40	275.00	\$660.00
7/5/2017	BC	Draft Opposition to Motion to Dismiss. Draft Vega Declaration. Communications with client regarding whether bags or vinyl gloves were transported and whether any goods were supposed to move by air versus ocean. Review documents and communications regarding shipments for which SBA issued airway bills and air invoices despite the fact that goods moved by ocean.	3.90	275.00	\$1,072.50
7/6/2017	DPS	Review and revise opposition to Motion to Dismiss. Conference with Brendan Collins regarding same.	1.00	275.00	\$275.00

7/6/2017	BC	Edits to Opposition to Motion to Dismiss and to Vega Declaration. Communication regarding whether SBA issued credit to CMI for damage to cargo, thus assuming responsibility for past transportation. Communications regarding forwarder regulations. Communications regarding possibility of amending complaint to claim fraud for charging air freight rates for ocean transportation.	3.30	275.00	\$907.50
7/6/2017	KOL	Review/analyze draft.	1.60	175.00	\$280.00
7/7/2017	DPS	Review opposition to Motion to Dismiss and attached declaration. Conference with Brendan Collins regarding same.	0.80	275.00	\$220.00
7/7/2017	BC	Communication with client regarding opposition to motion to dismiss and declaration. Edits to same. Pull together exhibits in support of opposition.	2.50	275.00	\$687.50
7/7/2017	KOL	Review/analyze. Shepardized cases and made corrections to citations.	1.30	175.00	\$227.50
7/10/2017	DPS	Revise Vega declaration and opposition to Motion to Dismiss.	0.40	275.00	\$110.00
7/10/2017	BC	Edits to opposition to motion to dismiss. Draft of default judgment against Las Freight.	2.20	275.00	\$605.00
7/19/2017	BC	Review SBA Reply and supporting documents in Support of Motion to Dismiss. Review correspondence from Las Freight filed with the FMC.	1.10	275.00	\$302.50
7/20/2017	DPS	Review SBA response to opposition to motion to dismiss. Conference with Brendan Collins regarding same.	0.60	275.00	\$165.00

Total Fees	\$6,382.50
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Timekeeper Summary

		HOURS	AMOUNT
KOL	Little, Kristine O	4.10	\$717.50
BC	Collins, Brendan	15.30	\$4,207.50
DPS	Street, David P.	5.30	\$1,457.50

EXPENSES

7/31/2017	206	Westlaw	\$664.51
Total Expenses			\$664.51

Billing Summary for all Matters

Total professional services	\$6,382.50
Total expenses incurred	\$664.51

Total of new charges for this invoice	\$7,047.01
Plus net balance forward	\$8,877.70
Total balance now due (USD)	<u>\$15,924.71</u>

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	106667	6/20/2017	\$8,742.70	\$5,742.70
0999	106815	7/12/2017	\$3,135.00	\$3,135.00

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

September 14, 2017

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 107268
Client # 102804
Billing through 8/31/2017

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$5,722.50	\$1,530.65	\$7,253.15

Current Charges	\$7,253.15
Balance Forward	\$15,924.71
Total Balance Now Due (USD)	<u><u>\$23,177.86</u></u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

September 14, 2017

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 107268
Client # 102804
Billing through 8/31/2017

Matter

0999 General Matters

Balance forward as of invoice dated: 8/11/2017	\$15,924.71
Payments received since last invoice	\$0.00
Accounts receivable balance brought forward	<u>\$15,924.71</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
8/16/2017	DPS	Review Judge's order. Conference with Brendan Collins regarding same.	0.40	275.00	\$110.00
8/16/2017	BC	Review ALJ's Order to supplement the record and regarding Notice of Default.	0.80	275.00	\$220.00
8/17/2017	DPS	Conference with Brendan Collins regarding response to Judge's Order.	0.40	275.00	\$110.00
8/17/2017	BC	Communication regarding what information needs to be provided to the ALJ.	0.50	275.00	\$137.50
8/23/2017	DPS	Conference with Brendan Collins regarding documents.	0.20	275.00	\$55.00
8/23/2017	BC	Review documents that need to be produced in response to court's order.	1.30	275.00	\$357.50
8/23/2017	KOL	Review/analyze ocean and airway bill of lading. Draft/revise spreadsheet for ocean and airway bill of lading.	3.50	175.00	\$612.50
8/24/2017	DPS	Review draft response to Judge's Order. Review SBA documents.	1.30	275.00	\$357.50
8/24/2017	BC	Draft response to Judge's order.	2.20	275.00	\$605.00
8/24/2017	KOL	Draft/revise spreadsheet. Review documents.	1.60	175.00	\$280.00
8/25/2017	DPS	Revise Response to Judge's Order.	1.60	275.00	\$440.00
8/25/2017	BC	Draft response to Judge's order. Review bills of lading.	2.70	275.00	\$742.50

8/25/2017	KOL	Draft/revise spreadsheets. Prepared exhibits.	3.70	175.00	\$647.50
8/28/2017	DPS	Review and revise CMI response to Judge's order.	1.30	275.00	\$357.50
8/28/2017	KOL	Review/analyze exhibits and supplemental information.	0.70	175.00	\$122.50
8/29/2017	KOL	Review and revise exhibits.	0.90	175.00	\$157.50
8/30/2017	DPS	Review filing in response to Judge's order.	0.40	275.00	\$110.00
8/30/2017	BC	Review SBA response to Order. Review attached documents.	0.90	275.00	\$247.50
8/30/2017	KOL	Review/analyze exhibits.	0.20	175.00	\$35.00
8/31/2017	KOL	Review/analyze bills of lading submitted by SBA.	0.10	175.00	\$17.50
				Total Fees	<u>\$5,722.50</u>

Timekeeper Summary		HOURS	AMOUNT
KOL	Little, Kristine O	10.70	\$1,872.50
BC	Collins, Brendan	8.40	\$2,310.00
DPS	Street, David P.	5.60	\$1,540.00

EXPENSES

8/2/2017	206	Pacer	\$0.10
8/10/2017	206	Westlaw	\$1,530.55
			Total Expenses <u>\$1,530.65</u>

Billing Summary for all Matters

Total professional services	\$5,722.50
Total expenses incurred	<u>\$1,530.65</u>
Total of new charges for this invoice	\$7,253.15
Plus net balance forward	<u>\$15,924.71</u>
Total balance now due (USD)	<u>\$23,177.86</u>

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	106667	6/20/2017	\$8,742.70	\$5,742.70
0999	106815	7/12/2017	\$3,135.00	\$3,135.00
0999	107026	8/11/2017	\$7,047.01	\$7,047.01

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

October 05, 2017

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 107410
Client # 102804
Billing through 9/30/2017

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$5,095.00	\$194.85	\$5,289.85

Current Charges	\$5,289.85
Balance Forward	\$20,177.86
Total Balance Now Due (USD)	<u><u>\$25,467.71</u></u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

October 05, 2017

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 107410
Client # 102804
Billing through 9/30/2017

Matter

0999 General Matters

Balance forward as of invoice dated: 9/14/2017	\$23,177.86
Payments received since last invoice	\$3,000.00
Accounts receivable balance brought forward	<u>\$20,177.86</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
9/5/2017	DPS	Email correspondence with judge and opposing counsel regarding conference.	0.10	275.00	\$27.50
9/5/2017	BC	Review correspondence from Judge Guthridge regarding conference call. Arrangement of same. Communications regarding documents likely to be addressed.	0.60	275.00	\$165.00
9/6/2017	DPS	Conference call with the judge. Review shipping documentation.	0.90	275.00	\$247.50
9/6/2017	BC	Conference call with Judge. Follow up communications regarding same. Review Judge's Order regarding supplementing the record. Communications regarding shipments that moved through Canadian ports.	1.50	275.00	\$412.50
9/6/2017	KOL	Review/analyze exhibits and bills of lading.	1.40	175.00	\$245.00
9/7/2017	DPS	Review documents. Conference call with SBA attorney. Follow up research.	0.90	275.00	\$247.50
9/7/2017	BC	Review communication regarding Las Sweg and its role as part of Las Freight.	0.50	275.00	\$137.50
9/7/2017	KOL	Communicate pertaining to relevant shipments.	0.20	175.00	\$35.00
9/7/2017	KOL	Review/analyze all documents relating to various shipments. Organized all documents into relevant folders.	4.50	175.00	\$787.50

9/14/2017	BC	Communications regarding revisions to Exhibit 1 to Complaint to reflect what goods moved through Canadian ports.	0.90	275.00	\$247.50
9/14/2017	KOL	Review/analyze draft stipulations.	2.10	175.00	\$367.50
9/15/2017	DPS	Review and revise proposed stipulation.	0.10	275.00	\$27.50
9/15/2017	BC	Various communications regarding stipulation to FMC regarding Exhibit 1 to Complaint.	0.90	275.00	\$247.50
9/15/2017	KOL	Draft/revise email responding to draft stipulations.	0.80	175.00	\$140.00
9/18/2017	BC	Correspondence regarding filing stipulation with FMC.	0.70	275.00	\$192.50
9/18/2017	KOL	Review/analyze revised exhibit 1 chart.	0.20	175.00	\$35.00
9/21/2017	DPS	Review Notice and Order from the judge. Conference with Kristine Little regarding same. Correspondence with counsel and the judge regarding conference call.	0.50	275.00	\$137.50
9/21/2017	BC	Review Judge's Notice of Order setting scheduling conference.	0.30	275.00	\$82.50
9/21/2017	KOL	Review/analyze order pertaining to listed shipments. Draft/revise email.	1.20	175.00	\$210.00
9/22/2017	BC	Coordinate conference with judge.	0.20	275.00	\$55.00
9/26/2017	BC	Correspondence with client regarding potential additional demurrage claims. Review documents provided.	0.50	275.00	\$137.50
9/26/2017	KOL	Review/analyze documents pertaining to unrelated shipments; Draft/revise email.	0.40	175.00	\$70.00
9/27/2017	KOL	Review/analyze bills of lading and fmc order.	0.70	175.00	\$122.50
9/28/2017	DPS	Conference call with the judge regarding damages issues.	0.30	275.00	\$82.50
9/28/2017	BC	Conference call with judge. Preparation for same.	1.10	275.00	\$302.50
9/28/2017	KOL	Review/analyze bills of lading and related documents; outside communication with FMC.	1.10	175.00	\$192.50
9/29/2017	KOL	Review/analyze bills of lading.	0.80	175.00	\$140.00
				Total Fees	<u>\$5,095.00</u>

Timekeeper Summary

		HOURS	AMOUNT
KOL	Little, Kristine O	13.40	\$2,345.00
BC	Collins, Brendan	7.20	\$1,980.00
DPS	Street, David P.	2.80	\$770.00

EXPENSES

9/5/2017	201	FedEx	\$88.04
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9/29/2017 206 Westlaw

\$106.81

Total Expenses

\$194.85

Billing Summary for all Matters

Total professional services	\$5,095.00
Total expenses incurred	<u>\$194.85</u>
Total of new charges for this invoice	\$5,289.85
Plus net balance forward	<u>\$20,177.86</u>
Total balance now due (USD)	<u><u>\$25,467.71</u></u>

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	106667	6/20/2017	\$8,742.70	\$2,742.70
0999	106815	7/12/2017	\$3,135.00	\$3,135.00
0999	107026	8/11/2017	\$7,047.01	\$7,047.01
0999	107268	9/14/2017	\$7,253.15	\$7,253.15

3. Discovery - 10/07/2017 to 03/12/2018

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

November 06, 2017

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 107628
Client # 102804
Billing through 10/31/2017

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$6,097.50	\$0.00	\$6,097.50

Current Charges	\$6,097.50
Balance Forward	\$22,725.01
Total Balance Now Due (USD)	<u><u>\$28,822.51</u></u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

November 06, 2017

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 107628
Client # 102804
Billing through 10/31/2017

Matter

0999 General Matters

Balance forward as of invoice dated: 10/5/2017	\$25,467.71
Payments received since last invoice	\$2,742.70
Accounts receivable balance brought forward	<u>\$22,725.01</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
10/2/2017	DPS	Review Las Freight shipments. Conference with Brendan Collins and Kristine Little regarding same.	0.30	275.00	\$82.50
10/2/2017	BC	Review correspondence regarding Las Freight bills of lading. Communication with client regarding customers for whom services were provided and whether goods were held up until demurrage was paid.	0.70	275.00	\$192.50
10/2/2017	KOL	Review/analyze bills of lading pertaining to last freight. Compile list of containers with Las Freight's bill of lading. Draft/revise email.	3.20	175.00	\$560.00
10/3/2017	BC	Communications regarding total demurrage paid on containers moving on Las Freight bills of lading.	0.30	275.00	\$82.50
10/6/2017	BC	Review ALJ order granting in part, denying in part, motion to dismiss. Communication with client regarding same. Communication with the ALJ regarding audio transcript of hearing.	1.10	275.00	\$302.50
10/12/2017	BC	Communication regarding initial disclosure.	0.30	275.00	\$82.50
10/13/2017	BC	Review draft initial disclosures.	0.60	275.00	\$165.00
10/13/2017	KOL	Draft/revise initial disclosures.	1.90	175.00	\$332.50
10/16/2017	KOL	Draft/revise initial disclosures.	0.60	175.00	\$105.00
10/17/2017	DPS	Conference with Brendan Collins regarding disclosures.	0.20	275.00	\$55.00

10/17/2017	KOL	Draft/revise initial disclosures; review/analyze documents and scheduling.	1.50	175.00	\$262.50
10/18/2017	KOL	Draft/revise initial disclosures; outbound call to CMI; Email CMI.	0.80	175.00	\$140.00
10/19/2017	BC	Edits to Rule 26 initial disclosures. Communication with cliient regarding last known address of Diana Alvarado. Reveiw SBA's initial disclosures.	0.90	275.00	\$247.50
10/19/2017	KOL	Draft/revise initial disclosures.	1.70	175.00	\$297.50
10/20/2017	BC	Review revised disclosures. Communication regarding scheduling.	0.70	275.00	\$192.50
10/20/2017	KOL	Draft/revise proposed discovery schedule; review regualtions and rules pertaining to discovery.	0.70	175.00	\$122.50
10/23/2017	BC	Review draft discovery schedule; edits to same. Conference call with opposing counsel to discuss scheduling.	0.90	275.00	\$247.50
10/23/2017	KOL	Draft/revise proposed discovery schedule.	0.80	175.00	\$140.00
10/24/2017	KOL	Telephone Communicate (other external) with FMC to schedule CADRS.	0.20	175.00	\$35.00
10/25/2017	KOL	Draft/revise interrogatories.	1.60	175.00	\$280.00
10/26/2017	BC	Review draft discovery. Revisions to same.	0.90	275.00	\$247.50
10/26/2017	BC	Conference call with CADRS.	0.30	275.00	\$82.50
10/26/2017	KOL	Draft/revise interrogatories and request for production.	1.60	175.00	\$280.00
10/27/2017	BC	Communication with opposing counsel regarding inability to extend discovery deadline without ALJ approval.	0.30	275.00	\$82.50
10/27/2017	KOL	Draft/revise interrogatories.	1.30	175.00	\$227.50
10/30/2017	DPS	Review and revise interrogatories and document requests to SBA and Radiant. Review Judge's orders.	0.80	275.00	\$220.00
10/30/2017	KOL	Draft/revise interrogatories.	3.90	175.00	\$682.50
10/31/2017	DPS	Review and revise discovery requests to SBA and Radiant. Conference with Brendan Collins regarding same.	0.40	275.00	\$110.00
10/31/2017	BC	Edits to discovery.	0.30	275.00	\$82.50
10/31/2017	KOL	Draft/revise interrogatories and request for production of documents.	0.90	175.00	\$157.50
				Total Fees	\$6,097.50

Timekeeper Summary
KOL Little, Kristine O

HOURS
20.70

AMOUNT
\$3,622.50

BC	Collins, Brendan	7.30	\$2,007.50
DPS	Street, David P.	1.70	\$467.50

Billing Summary for all Matters

Total professional services	\$6,097.50
Total expenses incurred	\$0.00
Total of new charges for this invoice	<u>\$6,097.50</u>
Plus net balance forward	\$22,725.01
Total balance now due (USD)	<u><u>\$28,822.51</u></u>

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	106815	7/12/2017	\$3,135.00	\$3,135.00
0999	107026	8/11/2017	\$7,047.01	\$7,047.01
0999	107268	9/14/2017	\$7,253.15	\$7,253.15
0999	107410	10/5/2017	\$5,289.85	\$5,289.85

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

December 04, 2017

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 107991
Client # 102804
Billing through 11/30/2017

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$445.00	\$0.00	\$445.00

Current Charges	\$445.00
Balance Forward	\$25,687.51
Total Balance Now Due (USD)	<u>\$26,132.51</u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

December 04, 2017

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 107991
Client # 102804
Billing through 11/30/2017

Matter

0999 General Matters

Balance forward as of invoice dated: 11/6/2017	\$28,822.51
Payments received since last invoice	\$3,135.00
Accounts receivable balance brought forward	<u>\$25,687.51</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
11/8/2017	BC	Review FMC's Notice Not to Review Order.	0.20	275.00	\$55.00
11/20/2017	BC	Review discovery propounded by SBA.	0.70	275.00	\$192.50
11/20/2017	KOL	Review/analyze discovery request and interrogatories.	0.50	175.00	\$87.50
11/22/2017	BC	Communication with client regarding discovery.	0.20	275.00	\$55.00
11/27/2017	BC	Communication with client regarding discovery.	0.20	275.00	\$55.00
Total Fees					<u>\$445.00</u>

Timekeeper Summary

		HOURS	AMOUNT
BC	Collins, Brendan	1.30	\$357.50
KOL	Little, Kristine O	0.50	\$87.50

Billing Summary for all Matters

Total professional services	\$445.00
Total expenses incurred	\$0.00
Total of new charges for this invoice	<u>\$445.00</u>
Plus net balance forward	<u>\$25,687.51</u>
Total balance now due (USD)	<u><u>\$26,132.51</u></u>

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	107026	8/11/2017	\$7,047.01	\$7,047.01

0999	107268	9/14/2017	\$7,253.15	\$7,253.15
0999	107410	10/5/2017	\$5,289.85	\$5,289.85
0999	107628	11/6/2017	\$6,097.50	\$6,097.50

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

January 10, 2018

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 108206
Client # 102804
Billing through 12/31/2017

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$2,904.00	\$0.00	\$2,904.00

Current Charges	\$2,904.00
Balance Forward	\$26,132.51
Total Balance Now Due (USD)	<u><u>\$29,036.51</u></u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

January 10, 2018

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 108206
Client # 102804
Billing through 12/31/2017

Matter

0999 General Matters

Balance forward as of invoice dated: 12/4/2017	\$26,132.51
Payments received since last invoice	\$0.00
Accounts receivable balance brought forward	<u>\$26,132.51</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
12/21/2017	BC	Communications with Maria regarding what additional documents and information we need in responding to discovery. Edits to discovery responses. Review additional documents.	0.80	530.00	\$424.00
12/11/2017	KOL	Draft/revise interrogatories and answers.	0.40	175.00	\$70.00
12/13/2017	BC	Communication regarding filing status report with FMC. Review same.	0.30	275.00	\$82.50
12/13/2017	KOL	Draft/revise joint status report. Email B. Collins pertaining to joint status report. Email Steve Block.	1.60	175.00	\$280.00
12/15/2017	KOL	Draft/revise interrogatories/answers.	0.90	175.00	\$157.50
12/18/2017	KOL	Draft/revise answers and request for production.	1.80	175.00	\$315.00
12/19/2017	KOL	Draft/revise answers to SBA's interrogatories and request for production.	3.20	175.00	\$560.00
12/20/2017	BC	Review draft discovery responses. Edits to same. Review potential responsive documents. Correspondence with Maria regarding what additional documents and information we need in responding to discovery.	2.10	275.00	\$577.50
12/20/2017	KOL	Draft/revise CMI's answers to request for production and interrogatories.	2.30	175.00	\$402.50
12/21/2017	KOL	Draft/revise answers/interrogatories.	0.20	175.00	\$35.00
Total Fees					<u>\$2,904.00</u>

Timekeeper Summary		HOURS	AMOUNT
BC	Collins, Brendan	3.20	\$1,084.00
KOL	Little, Kristine O	10.40	\$1,820.00

Billing Summary for all Matters

Total professional services	\$2,904.00
Total expenses incurred	\$0.00
Total of new charges for this invoice	<u>\$2,904.00</u>
Plus net balance forward	\$26,132.51
Total balance now due (USD)	<u><u>\$29,036.51</u></u>

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	107026	8/11/2017	\$7,047.01	\$7,047.01
0999	107268	9/14/2017	\$7,253.15	\$7,253.15
0999	107410	10/5/2017	\$5,289.85	\$5,289.85
0999	107628	11/6/2017	\$6,097.50	\$6,097.50
0999	107991	12/4/2017	\$445.00	\$445.00

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

February 14, 2018

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 108430
Client # 102804
Billing through 1/31/2018

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$13,310.00	\$0.00	\$13,310.00

Current Charges	\$13,310.00
Balance Forward	\$14,291.35
Total Balance Now Due (USD)	<u><u>\$27,601.35</u></u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

February 14, 2018

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 108430
Client # 102804
Billing through 1/31/2018

Matter

0999 General Matters

Balance forward as of invoice dated: 1/10/2018	\$29,036.51
Payments received since last invoice	\$14,745.16
Accounts receivable balance brought forward	<u>\$14,291.35</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
1/5/2018	BC	Review Joint Status Report and communications regarding same. Communication with client regarding need to pull together responsive documents.	0.60	275.00	\$165.00
1/5/2018	KOL	Manage data/files for discovery.	1.40	275.00	\$385.00
1/8/2018	BC	Communication with client regarding need to pull together responsive documents.	0.20	275.00	\$55.00
1/10/2018	KOL	Manage data/files for discovery.	2.90	275.00	\$797.50
1/11/2018	BC	Review documents forwarded by Maria. Correspondence regarding need for additional documents and information for discovery responses.	0.90	275.00	\$247.50
1/11/2018	KOL	Manage data/files for discovery.	4.70	275.00	\$1,292.50
1/12/2018	BC	Review draft discovery; edits to same. Conference call with Maria to discuss need for additional discovery documents.	2.10	275.00	\$577.50
1/12/2018	KOL	Draft/revise answers and request for production.	4.30	275.00	\$1,182.50
1/15/2018	BC	Review SBA discovery responses.	2.10	275.00	\$577.50
1/16/2018	DPS	Review responses from SBA and Radiant to our discovery questions and requests. Conference with Brendan Collins regarding same.	1.10	275.00	\$302.50

1/16/2018	BC	Review document production from SBA. Coordination of conference call to discuss issues with opposing counsel. Request for additional information from client.	1.10	275.00	\$302.50
1/19/2018	BC	Review ALJ's communication as to government shutdown.	0.20	275.00	\$55.00
1/22/2018	BC	Review documents produced by SBA.	1.60	275.00	\$440.00
1/22/2018	KOL	Manage data/files from discovery.	1.70	275.00	\$467.50
1/23/2018	DPS	Telephone conference with SBA counsel regarding discovery issues. Conference with Brendan Collins regarding review of SBA document production.	1.80	275.00	\$495.00
1/23/2018	BC	Conference call with opposing counsel regarding respective parties concerns as to deficiencies in discovery responses. Review SBA document production.	2.10	275.00	\$577.50
1/23/2018	KOL	Manage data/files from discovery. Meet and confer with B. Collins and D. Street. Phone call to opposing counsel.	3.30	275.00	\$907.50
1/24/2018	KOL	Manage data/files provided from discovery.	2.30	275.00	\$632.50
1/25/2018	BC	Communications with Maria regarding need for additional discovery. Edits to discovery responses. Review SBA discovery documents.	1.90	275.00	\$522.50
1/25/2018	KOL	Manage data/files for discovery.	2.00	275.00	\$550.00
1/28/2018	BC	Review documents produced by SBA.	3.30	275.00	\$907.50
1/29/2018	BC	Phone call and other communications with Maria regarding need for documents from Jeff. Review SBA document production.	3.90	275.00	\$1,072.50
1/29/2018	KOL	Communicate (with client) via email. Confer via telephone with B. Collins pertaining to supplemental discovery.	0.20	275.00	\$55.00
1/30/2018	BC	Communications with Maria requesting documents needed for production.	0.40	275.00	\$110.00
1/30/2018	KOL	Draft/revise email. Review/analyze documents. Confer with B. Collins.	0.90	275.00	\$247.50
1/31/2018	BC	Review documents from Jeff Percival. Edits to discovery responses.	0.70	275.00	\$192.50
1/31/2018	KOL	Review/analyze documents for discovery.	0.70	275.00	\$192.50
Total Fees					<u>\$13,310.00</u>

Timekeeper Summary

BC Collins, Brendan

HOURS

21.10

AMOUNT

\$5,802.50

KOL	Little, Kristine O	24.40	\$6,710.00
DPS	Street, David P.	2.90	\$797.50

Billing Summary for all Matters

Total professional services	\$13,310.00
Total expenses incurred	\$0.00
Total of new charges for this invoice	<u>\$13,310.00</u>
Plus net balance forward	\$14,291.35
Total balance now due (USD)	<u><u>\$27,601.35</u></u>

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	107410	10/5/2017	\$5,289.85	\$5,289.85
0999	107628	11/6/2017	\$6,097.50	\$6,097.50
0999	108206	1/10/2018	\$2,904.00	\$2,904.00

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

March 16, 2018

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 108684
Client # 102804
Billing through 2/28/2018

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$21,670.00	\$0.00	\$21,670.00

Current Charges	\$21,670.00
Balance Forward	\$27,601.35
Total Balance Now Due (USD)	<u><u>\$49,271.35</u></u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

March 16, 2018

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 108684
Client # 102804
Billing through 2/28/2018

Matter

0999 General Matters

Balance forward as of invoice dated: 2/14/2018	\$27,601.35
Payments received since last invoice	\$0.00
Accounts receivable balance brought forward	<u>\$27,601.35</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
2/1/2018	DPS	Conference with Brendan Collins regarding case strategy.	0.30	275.00	\$82.50
2/1/2018	BC	Review supplemental response to SBA discovery. Review SBA supplemental response. Correspondence regarding Jay Jalowiecki.	1.10	275.00	\$302.50
2/1/2018	KOL	Manage data/files for supplemental response to discovery. Review all emails and additional documentation provided by CMI. Confer with B. Collins. Convert documents into PDFS and transfer from outlook. Organize documents for production. Manage redactions and re-review all files prior to submitting to opposing counsel. Review supplemental response to interrogatories.	2.20	275.00	\$605.00
2/2/2018	BC	Draft deposition outline. Pull together relevant exhibits.	3.10	275.00	\$852.50
2/5/2018	DPS	Review shipment files. Draft memo to Brendan Collins regarding case strategy and need for expert's report.	1.60	275.00	\$440.00
2/5/2018	BC	Review correspondence regarding Freight Tech invoices. Review email from David Street regarding facts needed and what expert testimony Steve Ferreira can provide. Communication with Steve regarding serving as an expert. Communication with opposing counsel regarding extending deadline for expert disclosure.	2.10	275.00	\$577.50

2/5/2018	KOL	Manage data/files from discovery. Document review. Review and organize documents produced by SBA. Add additional container documents pertaining to FMC jurisdiction shipments into file.	1.30	275.00	\$357.50
2/6/2018	BC	Review SBA discovery documents.	2.10	275.00	\$577.50
2/6/2018	KOL	Manage data/files from discovery. Review production documents and relevant shipping documents.	1.00	275.00	\$275.00
2/7/2018	DPS	Conference with Kristine Little regarding preparation of shipment information for expert.	0.30	275.00	\$82.50
2/7/2018	BC	Review updated spreadsheets.	0.90	275.00	\$247.50
2/7/2018	KOL	Manage data/files. Re-reviewed all associated shipping documentation for the containers. Created spreadsheet for the containers.	1.10	275.00	\$302.50
2/8/2018	DPS	Review SBA Global Logistics tariff/NRA. Conference with Brendan Collins regarding same. Send shipment chart to expert for review and discussion.	0.70	275.00	\$192.50
2/8/2018	BC	Review SBA discovery documents. Review tariff document and communications regarding same. Communications with Steve Ferreira regarding acting as an expert and what documents to review.	2.10	275.00	\$577.50
2/8/2018	KOL	Manage data/files from discovery. Draft/revise joint status report.	0.30	275.00	\$82.50
2/9/2018	DPS	Conference with Brendan Collins regarding SBA tariff. Send spreadsheet to expert with cover email.	0.30	275.00	\$82.50
2/9/2018	BC	Various communications with Steve Ferreira regarding materials needed in regard to his opinion. Review documents to be provided. Review and edits to joint status report. Communication with opposing counsel regarding same. Further revision to report. Filing of same.	1.20	275.00	\$330.00
2/9/2018	KOL	Draft/revise joint status report.	0.50	275.00	\$137.50
2/12/2018	BC	Communication regarding whether Las Freight has per diem rule. Review SBA documents.	1.90	275.00	\$522.50
2/13/2018	DPS	Email correspondence and telephone conference with expert regarding scope of work.	0.70	275.00	\$192.50
2/13/2018	BC	Review additional document from SBA.	0.50	275.00	\$137.50
2/13/2018	BC	Communication with Maria regarding upcoming deposition. Communication with Steve regarding what information we need from him. Draft expert report.	2.30	275.00	\$632.50
2/14/2018	DPS	Review tariff expert's analysis of shipments and charges. Telephone conference with tariff expert. Review and revise expert's report.	1.10	275.00	\$302.50

2/14/2018	BC	Review chart from Steve. Finalize expert report. Communications regarding need for NYK and other VOCC tariff provisions. Coordination regarding offering him as expert witness and scheduling of same. Review CMI's first supplemental disclosure.	2.70	275.00	\$742.50
2/15/2018	DPS	Review and revise Expert's Report. Review NYK, K-Line and YML detention tariffs. Follow up review of expert's report and revise same.	1.80	275.00	\$495.00
2/15/2018	BC	Review SBA documents produced in discovery. Communication with Steve Ferreira regarding expert report.	1.80	275.00	\$495.00
2/16/2018	DPS	Review shipping documents from SBA. Telephone conference with expert. Conference with Brendan Collins regarding expert report.	0.60	275.00	\$165.00
2/16/2018	BC	Finalize Ferreira expert report; compilation of supporting documentation. Forward same to opposing counsel. Review additinoal documents from SBA.	2.30	275.00	\$632.50
2/19/2018	BC	Communication with opposing counsel regarding deposition scheduling. Communications regarding settlement possibilities. Review Illinois Statute of Limitations.	1.10	275.00	\$302.50
2/20/2018	DPS	Email correspondence with Expert regarding possible misuse of service contracts. Conference with Brendan Collins regarding same. Follow up email correspondence from expert regarding absence of tariff rates.	0.50	275.00	\$137.50
2/20/2018	BC	Draft settlement letter to opposing counsel.	1.60	275.00	\$440.00
2/21/2018	BC	Communication with opposing counsel regarding deposition logistics. Communications with S. Ferreira regarding tariff issues.	0.80	275.00	\$220.00
2/22/2018	DPS	Conferences with Brendan Collins regarding rate filing issues with Las Freight and the co-loaders and deposition of SBA.	0.30	275.00	\$82.50
2/22/2018	BC	Prepare deposition outlines. Pull together exhibits.	3.30	275.00	\$907.50
2/22/2018	KOL	Review/analyze documents pertaining to shipments. Review documents that charged airfreight. Review email discussing charges and match the emails with the shipping documents (bills of lading, invoices, etc.). Confer with D. Hensley pertaining to creating a binder of all the container documents. Review binder.	1.00	275.00	\$275.00
2/22/2018	KOL	Review/analyze audio from telephone conference. Draft/revise email to B. Collins pertaining to the phone call.	0.40	275.00	\$110.00

2/23/2018	BC	Review SBA notices of deposition. Draft CMI notices of deposition and 30(b)(6) notice. Draft Tincher deposition outline. Coordinate deposition logistics. Attempts to reach Maria.	4.50	275.00	\$1,237.50
2/23/2018	KOL	Manage data/files review documents. Draft/revise notice of deposition 30(b)(6).	0.60	275.00	\$165.00
2/25/2018	BC	Communications with client regarding depositions and inquiries as to specific demurrage claims.	1.00	275.00	\$275.00
2/26/2018	DPS	Review deposition outline and conference with Brendan Collins regarding deposition strategy. Review shipment files and discovery documents and confer with Brendan Collins regarding their application to the depositions.	2.00	275.00	\$550.00
2/26/2018	BC	Deposition outline. Review exhibits for use in deposition.	4.00	275.00	\$1,100.00
2/26/2018	KOL	Review/analyze deposition questions.	0.30	275.00	\$82.50
2/26/2018	KOL	Draft/revise objections to 30(b)(6).	1.80	275.00	\$495.00
2/26/2018	KOL	Manage data/files for deposition.	0.40	275.00	\$110.00
2/27/2018	DPS	Email correspondence with Brendan Collins regarding issues for the depositions.	0.30	275.00	\$82.50
2/27/2018	BC	Travel and deposition preparation.	8.00	275.00	\$2,200.00
2/28/2018	BC	Attendance at and participation in CMI depositions.	8.00	275.00	\$2,200.00
2/28/2018	KOL	Expert witness preparation with Steve Ferreira.	1.00	275.00	\$275.00
				Total Fees	<u>\$21,670.00</u>

Timekeeper Summary		HOURS	AMOUNT
BC	Collins, Brendan	56.40	\$15,510.00
KOL	Little, Kristine O	11.90	\$3,272.50
DPS	Street, David P.	10.50	\$2,887.50

Billing Summary for all Matters

Total professional services	\$21,670.00
Total expenses incurred	<u>\$0.00</u>
Total of new charges for this invoice	\$21,670.00
Plus net balance forward	\$27,601.35
Total balance now due (USD)	<u><u>\$49,271.35</u></u>

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	107410	10/5/2017	\$5,289.85	\$5,289.85

0999	107628	11/6/2017	\$6,097.50	\$6,097.50
0999	108206	1/10/2018	\$2,904.00	\$2,904.00
0999	108430	2/14/2018	\$13,310.00	\$13,310.00

4. Briefing Stage-

3/13/2018 to 7/09/2018

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

April 09, 2018

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 108905
Client # 102804
Billing through 3/31/2018

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$27,252.50	\$4,666.13	\$31,918.63

Current Charges	\$31,918.63
Balance Forward	\$21,670.00
Total Balance Now Due (USD)	<u>\$53,588.63</u>

**Trust cash remaining balance is \$1,800.00

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

April 09, 2018

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 108905
Client # 102804
Billing through 3/31/2018

Matter

0999 General Matters

Balance forward as of invoice dated: 3/16/2018	\$49,271.35
Payments received since last invoice	\$27,601.35
Accounts receivable balance brought forward	<u>\$21,670.00</u>

Trust balance	\$1,800.00
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PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
2/27/2018	KOL	Deposition with B. Collins.	1.00	275.00	\$275.00
2/28/2018	KOL	Deposition with B. Collins.	1.00	275.00	\$275.00
3/1/2018	DPS	Email correspondence with Brendan Collins regarding deposition issues pertaining to motor carrier liens and demurrage.	0.50	275.00	\$137.50
3/1/2018	BC	Attendance at and participation in CMI depositions.	8.00	275.00	\$2,200.00
3/1/2018	KOL	Appear for/attend deposition. Includes travel time from Chicago to DC.	1.00	275.00	\$275.00
3/2/2018	BC	Communication regarding payment of Steve Ferreira. Settlement possibility.	0.60	275.00	\$165.00
3/6/2018	DPS	Conference with Brendan Collins and Kristine Little regarding deposition results.	0.40	275.00	\$110.00
3/6/2018	BC	Review additional discovery documents. Settlement communications. Summary of status to client.	1.10	275.00	\$302.50
3/6/2018	KOL	Communicate (in firm). Confer with B. Collins and D. Street regarding the deposition.	0.50	275.00	\$137.50
3/7/2018	DPS	Review and revise report to client on depositions and settlement talks.	0.10	275.00	\$27.50
3/8/2018	DPS	Review SBA documents. Conferences with Brendan Collins regarding same.	0.70	275.00	\$192.50

3/8/2018	BC	Document review.	0.90	275.00	\$247.50
3/8/2018	KOL	Manage data/files reviewing container documents and pulling relevant documents.	1.70	275.00	\$467.50
3/9/2018	BC	Review transcripts.	0.40	275.00	\$110.00
3/14/2018	BC	Edits to joint status report. Review communication from Block regarding same.	0.50	275.00	\$137.50
3/14/2018	BC	Communication with opposing counsel regarding need for payment to Ferreira.	0.30	275.00	\$82.50
3/14/2018	KOL	Draft/revise joint status report.	1.00	275.00	\$275.00
3/15/2018	BC	Draft statement of facts.	1.60	275.00	\$440.00
3/16/2018	BC	Draft statement of facts.	1.40	275.00	\$385.00
3/19/2018	BC	Draft statement of facts. Correspondence regarding need for transcripts.	1.50	275.00	\$412.50
3/20/2018	DPS	Review draft statement of facts and summary of Tincher deposition. Conference with Brendan Collins regarding same.	0.40	275.00	\$110.00
3/20/2018	BC	Review Tincher and Zasada transcripts. Incorporate same into statements of fact.	3.40	275.00	\$935.00
3/20/2018	KOL	Draft/revise CMI's proposed findings of facts.	2.20	275.00	\$605.00
3/21/2018	BC	Draft of brief.	1.40	275.00	\$385.00
3/21/2018	KOL	Draft/revise CMI's proposed findings of facts. Review citations and make corrections. Review depositions.	3.00	275.00	\$825.00
3/22/2018	DPS	Review and revise Las Freight statement of facts.	0.40	275.00	\$110.00
3/22/2018	BC	Communication with opposing counsel regarding payment for Ferreira. Review response to same. Edits to Statements of Fact.	2.10	275.00	\$577.50
3/22/2018	KOL	Manage data/files for exhibits. Review exhibits for proposed filings. Draft/revise proposed findings of fact.	2.50	275.00	\$687.50
3/23/2018	BC	Draft of brief in support of claim against SBA.	4.40	275.00	\$1,210.00
3/23/2018	KOL	Draft/revise filings. Review depositions. Manage citations and exhibits.	1.10	275.00	\$302.50
3/26/2018	DPS	Review and revise statement of facts. Conference with Brendan Collins regarding same.	1.40	275.00	\$385.00
3/26/2018	BC	Draft Statement of Facts.	3.70	275.00	\$1,017.50
3/26/2018	KOL	Draft/revise CMI proposed findings of facts. Review exhibits and depositions. Correct cites. Review container documents pertaining to bills of lading.	2.80	275.00	\$770.00

3/27/2018	DPS	Review and revise statement of facts for claim against SBA.	0.90	275.00	\$247.50
3/27/2018	BC	Draft Brief. Research. Identify exhibits.	4.60	275.00	\$1,265.00
3/27/2018	KOL	Manage data/files. Review documents for detention charges. Review documents for bill of lading. draft/revise filings.	1.90	275.00	\$522.50
3/28/2018	BC	Draft Statements of Fact and Brief. Review relevant documents.	7.50	275.00	\$2,062.50
3/28/2018	KOL	Research pertaining to unreasonable practices and liens.	1.10	275.00	\$302.50
3/28/2018	KOL	Draft/revise proposed findings of facts and declarations.	2.30	275.00	\$632.50
3/29/2018	DPS	Review and revise Statement of Maria Vega and draft of argument.	1.10	275.00	\$302.50
3/29/2018	BC	Draft SBA Brief, Statements of Fact and Vega Declaration. Research Commission caselaw governing same.	8.20	275.00	\$2,255.00
3/29/2018	KOL	Draft/revise Vega Declaration against SBA. Manage/organize exhibits. Correct citations and verify cited exhibits are correct.	2.00	275.00	\$550.00
3/29/2018	KOL	Review/analyze container demurrage calculations.	0.80	275.00	\$220.00
3/29/2018	KOL	Draft/revise. Review brief in support of judgment against Las Freight.	0.90	275.00	\$247.50
3/29/2018	KOL	Research pertaining to unreasonable shipping practices. Research pertaining to failure to appear.	0.80	275.00	\$220.00
3/30/2018	DPS	Review and revise Memorandum of Law. Research regarding same.	1.30	275.00	\$357.50
3/30/2018	BC	Draft Las Freight brief. Draft of Vega Declaration; and proposed Statements of Fact. Communications with Maria regarding need for additional information as to how much was paid and when in order to obtain release of containers.	8.00	275.00	\$2,200.00
3/30/2018	KOL	Confer with B. Collins pertaining to filings. Communicate (in firm).	0.20	275.00	\$55.00
3/30/2018	KOL	Draft/revise proposed findings of fact.	1.50	275.00	\$412.50
3/30/2018	KOL	Draft/revise Las Freight proposed findings of fact.	0.80	275.00	\$220.00
3/30/2018	KOL	Draft/revise Maria Teresa Declaration against Las Freight.	0.40	275.00	\$110.00
3/30/2018	KOL	Draft/revise brief in support of judgment against SBA.	1.80	275.00	\$495.00
				Total Fees	<u>\$27,252.50</u>

Timekeeper Summary		HOURS	AMOUNT
BC	Collins, Brendan	59.60	\$16,390.00
KOL	Little, Kristine O	32.30	\$8,882.50
DPS	Street, David P.	7.20	\$1,980.00

EXPENSES

3/5/2018	203	Uber from airport	\$61.23
3/5/2018	206	Computing Services	\$34.65
3/7/2018	E115	2/2018 Deposition	\$1,485.95
3/14/2018	201	FedEx	\$152.02
3/14/2018	214	Airfare for B. Collins & K. Little to Chicago	\$896.32
3/16/2018	214	Travel-Hotel for Deposition	\$389.52
3/16/2018	214	Travel to Chicago for Deposition	\$846.44
3/30/2018	209	Ocean Audits	\$800.00
Total Expenses			<u>\$4,666.13</u>

Billing Summary for all Matters

Total professional services	\$27,252.50
Total expenses incurred	<u>\$4,666.13</u>
Total of new charges for this invoice	\$31,918.63
Plus net balance forward	<u>\$21,670.00</u>
Total balance now due (USD)	<u>\$53,588.63</u>

**Trust cash remaining balance is \$1,800.00

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	108684	3/16/2018	\$21,670.00	\$21,670.00

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

May 02, 2018

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 108935
Client # 102804
Billing through 4/30/2018

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$8,607.50	\$3,582.78	\$12,190.28

Current Charges	\$12,190.28
Balance Forward	\$53,588.63
Total Balance Now Due (USD)	<u><u>\$65,778.91</u></u>

**Trust cash remaining balance is \$1,800.00

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

May 02, 2018

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 108935
Client # 102804
Billing through 4/30/2018

Matter

0999 General Matters

Balance forward as of invoice dated: 4/9/2018	\$53,588.63
Payments received since last invoice	\$0.00
Accounts receivable balance brought forward	<u>\$53,588.63</u>

Trust balance	\$1,800.00
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PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
4/1/2018	KOL	Draft/revise briefs, declarations, and proposed findings of fact.	3.00	275.00	\$825.00
4/2/2018	DPS	Review and revise argument in support of claim against Las Freight.	0.50	275.00	\$137.50
4/2/2018	BC	Communication with opposing counsel regarding SJ Motion. Conference call with ALJ opposing same. Edits to briefs and statements of fact. Communications with Maria regarding CMI payments made in response to ransom demands; need for revised Declarations.	3.30	275.00	\$907.50
4/2/2018	KOL	Communicate (in firm). Confer with B. Collins pertaining to the findings of fact.	1.10	275.00	\$302.50
4/2/2018	KOL	Draft/revise briefs, and declarations for Las Freight and SBA. Manage and organize exhibits. Review exhibits to verify they are correctly cited.	2.40	275.00	\$660.00
4/2/2018	KOL	Draft/revise proposed findings of fact for Las Freight and SBA.	1.60	275.00	\$440.00
4/3/2018	BC	Review correspondence regarding SBA's refusal to release containers until payments are received. Edits to brief and statements of fact. Revise Maria's Declaration. Review ALJ's Order regarding status conference.	2.50	275.00	\$687.50

4/3/2018	KOL	Draft/revise proposed findings of fact.	0.70	275.00	\$192.50
4/3/2018	KOL	Draft/revise brief las freight.	1.50	275.00	\$412.50
4/3/2018	KOL	Communicate (in firm) confer b.collins pertaining to exhibits and drafts for filing.	0.70	275.00	\$192.50
4/3/2018	KOL	Draft/revise declaration of Maria Vega (SBA and Las Freight).	1.90	275.00	\$522.50
4/3/2018	KOL	Manage data/files for Exhibits. Review and Organize exhibits. Prepare exhibits for filing.	1.70	275.00	\$467.50
4/4/2018	BC	Review exhibits. File brief and statement of facts.	2.30	275.00	\$632.50
4/4/2018	KOL	Research pertaining to filing practices, tariffs and shipping act violations.	1.60	275.00	\$440.00
4/4/2018	KOL	Draft/revise exhibits, briefs, declarations and proposed findings of fact. Reviewed and submitted documetns for filing with the FMC.	2.40	275.00	\$660.00
4/5/2018	KOL	Draft/revise email to Maria Vega pertaining to the filing.	0.30	275.00	\$82.50
4/5/2018	KOL	Draft/revise letter to the FMC. Reviewing FMC regulations pertaining to filings. Reviewing the briefs and making corrections. Submitting the corrections for filing.	1.90	275.00	\$522.50
4/6/2018	KOL	Draft/revise filing. Verify all corrections have been updated. Confer with D. Hensley. Draft/revise email to B. Collins. Re-submit documents for filing.	1.50	275.00	\$412.50
4/30/2018	BC	Forward exhibit to ALJ per his request.	0.30	275.00	\$82.50
4/30/2018	KOL	Draft/revise email to B. Collins. Reviewed documents for exhibit 1 word document filed in September.	0.10	275.00	\$27.50
				Total Fees	<u>\$8,607.50</u>

Timekeeper Summary

		HOURS	AMOUNT
BC	Collins, Brendan	8.40	\$2,310.00
KOL	Little, Kristine O	22.40	\$6,160.00
DPS	Street, David P.	0.50	\$137.50

EXPENSES

4/3/2018	209	Atkinson-Baker, Inc.	\$1,389.50
4/18/2018	200	Washington Express LLC	\$29.51
4/20/2018	201	FedEx	\$52.22
4/20/2018	206	Pacer	\$10.80
4/24/2018	206	Westlaw	\$715.15

4/24/2018 209 Atkinson-Baker, Inc.

\$1,385.60

Total Expenses

\$3,582.78

Billing Summary for all Matters

Total professional services	\$8,607.50
Total expenses incurred	<u>\$3,582.78</u>
Total of new charges for this invoice	\$12,190.28
Plus net balance forward	<u>\$53,588.63</u>
Total balance now due (USD)	<u><u>\$65,778.91</u></u>

**Trust cash remaining balance is \$1,800.00

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	108684	3/16/2018	\$21,670.00	\$21,670.00
0999	108905	4/9/2018	\$31,918.63	\$31,918.63

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

June 05, 2018

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 109239
Client # 102804
Billing through 5/31/2018

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$24,203.75	\$907.01	\$25,110.76

Current Charges	\$25,110.76
Balance Forward	\$55,778.91
Total Balance Now Due (USD)	<u><u>\$80,889.67</u></u>

**Trust cash remaining balance is \$1,800.00

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

June 05, 2018

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 109239
Client # 102804
Billing through 5/31/2018

Matter**0999 General Matters**

Balance forward as of invoice dated: 5/2/2018	\$65,778.91
Payments received since last invoice	\$10,000.00
Accounts receivable balance brought forward	<u>\$55,778.91</u>

Trust balance	\$1,800.00
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PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
5/2/2018	BC	Review SBA Brief. Review Jalowiecki Declaration. Communication with client regarding same.	2.70	275.00	\$742.50
5/3/2018	DPS	Review CMI brief and statement of facts and prepare responses. Review files regarding same. Conferences with Brendan Collins and Kristine Little.	1.60	275.00	\$440.00
5/3/2018	BC	Draft reply to SBA submission. Further communication with client regarding Jalowiecki. Draft motion to adjourn schedule to permit Jalowiecki deposition.	5.50	275.00	\$1,512.50
5/3/2018	KOL	Confer b. collins and d. street. Research FMC cases. Manage data/files for reply brief.	1.60	275.00	\$440.00
5/3/2018	KOL	Review/analyze filings submitted by opposing counsel.	1.60	275.00	\$440.00
5/3/2018	KOL	Verify if filings list Jay Jaloweicki.	0.30	275.00	\$82.50
5/4/2018	DPS	Review expert's report. Review bill of lading files and compare SBA airwaybills to house bills of lading.	1.20	275.00	\$330.00
5/4/2018	BC	Draft response to statement of facts. Draft insert addressing SBA's failure to refute facts with evidence.	3.50	275.00	\$962.50
5/4/2018	KOL	Draft/revise response to SBA's proposed findings of fact.	2.00	275.00	\$550.00

5/4/2018	KOL	Manage data/files. Organize Airway bills, house bills of lading and las freight bills of lading for relevant shipments.	1.40	275.00	\$385.00
5/7/2018	DPS	Research regarding SBA's status as a common carrier.	1.20	275.00	\$330.00
5/7/2018	BC	Draft reply brief; draft discussion of statment of facts.	2.60	275.00	\$715.00
5/7/2018	KOL	Draft/revise response to SBA's propose findings of fact.	1.00	275.00	\$275.00
5/8/2018	DPS	Prepare argument on SBA's holding out as an NVOCC.	1.60	275.00	\$440.00
5/8/2018	BC	Draft reply brief. Review communication with ALJ regarding conference call to discuss certain issues.	3.10	275.00	\$852.50
5/8/2018	KOL	Communicate (in firm) confer B. Collins. Review filings.	0.50	275.00	\$137.50
5/9/2018	DPS	Prepare argument on SBA's acting as a common carrier. Conference with Kristine Little regarding responses to SBA's statement of facts.	2.20	275.00	\$605.00
5/9/2018	BC	Communications with client regarding Mike Miller and possibility of him provding a sworn statement in our favor. Attempts to reach Miller. Follow up attempts to reach Jalowiecki. Draft reply brief.	2.90	275.00	\$797.50
5/9/2018	KOL	Draft/revise response to SBA's proposed findings of fact.	1.20	275.00	\$330.00
5/9/2018	KOL	Review/analyze delcarations of Jalowiecki and Zasada. Phone call to Michael Miller. Confer with B. Collins.	0.60	275.00	\$165.00
5/10/2018	DPS	Draft brief regarding SBA's holding out as a carrier.	1.00	275.00	\$275.00
5/10/2018	TSS	Review air waybills for specific information.	0.25	125.00	\$31.25
5/10/2018	BC	Review SBA objections to extension of discovery to depose Jalowiecki. Review opposition to SBA statements of fact.	1.90	275.00	\$522.50
5/10/2018	KOL	Draft/revise respone to SBA's proposed findings of fact. Review/analyze filings.	3.30	275.00	\$907.50
5/11/2018	DPS	Review and revise reply brief. Conferences with Brendan Collins regarding same.	2.40	275.00	\$660.00
5/13/2018	BC	Edits to reply brief. Edits to Statement of Facts response.	2.10	275.00	\$577.50
5/14/2018	DPS	Review and revise Reply Brief. Conferences with Brendan Collins and Kristine Little regarding same.	2.90	275.00	\$797.50
5/14/2018	BC	Conference call with ALJ to discuss appendix and Jalowiecki deposition. Follow up regarding same. Edits to response to statements of fact. Communications with Mike Miller.	2.40	275.00	\$660.00

5/14/2018	KOL	Manage data/files for joint appendix. Review production, prior filings and exhibits.	1.80	275.00	\$495.00
5/14/2018	KOL	Communicate (in firm) confer with D. Street. and B. Collins.	0.80	275.00	\$220.00
5/14/2018	KOL	Draft/revise reply brief.	0.80	275.00	\$220.00
5/14/2018	KOL	Draft/revise CMI's response to SBA's findings of fact.	0.60	275.00	\$165.00
5/15/2018	DPS	Conferences with Brendan Collins regarding responding to the Judge's expressed concerns.	0.40	275.00	\$110.00
5/15/2018	BC	Communications regarding joint appendix. Communications regarding direct contacts between shippers and SBA.	1.10	275.00	\$302.50
5/15/2018	KOL	Manage data/files for joint appendix. Review production, prior filings and exhibits.	2.00	275.00	\$550.00
5/15/2018	KOL	Review/analyze submitted by SBA.	0.40	275.00	\$110.00
5/16/2018	BC	Review ALJ's Order. Communication regarding content of joint appendix. Status report to Maria and Jerry. Communication with Mike Miller.	1.30	275.00	\$357.50
5/16/2018	KOL	Manage data/files for container documents. Review production for relevant documents.	1.40	275.00	\$385.00
5/16/2018	KOL	Research course of dealing cases.	2.00	275.00	\$550.00
5/17/2018	KOL	Manage data/files, review production and organize relevant documents for joint appendix.	3.50	275.00	\$962.50
5/18/2018	DPS	Review SBA payment records. Review judge's order. Conferences with Kristine Little regarding development of joint appendix. Prepare response to SBA's arguments.	1.40	275.00	\$385.00
5/18/2018	KOL	Manage data/files, review production and organize relevant documents for joint appendix.	2.60	275.00	\$715.00
5/21/2018	KOL	Manage data/files for container documents. Review production for relevant documents and create separate folders for relevant shipments.	2.90	275.00	\$797.50
5/22/2018	BC	Communications with Mike Miller. Forward same.	0.30	275.00	\$82.50
5/22/2018	KOL	Manage data/files for container documents. Review production for relevant documents.	1.90	275.00	\$522.50
5/23/2018	DPS	Conference with Brendan Collins regarding Joint Appendix. Review Joint Appendix. Conference with Kristine Little regarding research on holding out.	1.70	275.00	\$467.50
5/23/2018	BC	Review joint appendix. Revisions to same.	0.80	275.00	\$220.00
5/23/2018	KOL	Draft/revise email to B. Collins and D. Street.	0.20	275.00	\$55.00

5/23/2018	KOL	Communicate (in firm) Confer with B. Collins. Confer with D. Street pertaining to joint appendix.	0.60	275.00	\$165.00
5/23/2018	KOL	Manage data/files relating to creating joint appendix. Review relevant documents.	0.90	275.00	\$247.50
5/24/2018	DPS	Complete review of Joint Appendix. Conference with Brendan Collins regarding same.	0.70	275.00	\$192.50
5/24/2018	KOL	Manage data/files relating to the joint appendix. Create spreadsheet relating to ocean freight.	1.00	275.00	\$275.00
5/25/2018	DPS	Review cases on course of dealing regarding bills of lading.	0.30	275.00	\$82.50
5/29/2018	BC	Communication with opposing counsel regarding joint appendix.	0.20	275.00	\$55.00
5/30/2018	KOL	Draft/revise email. Confer with B. Collins.	0.20	275.00	\$55.00
5/31/2018	DPS	Review email correspondence with SBA counsel regarding IFS filings. Conference with Brendan Collins regarding same.	0.20	275.00	\$55.00
5/31/2018	BC	Communications with opposing counsel regarding joint appendix.	0.60	275.00	\$165.00
5/31/2018	KOL	Research pertaining to holding out and assuming responsibility for shipments. Review filings for joint appendix.	1.00	275.00	\$275.00
Total Fees					<u>\$24,203.75</u>

Timekeeper Summary		HOURS	AMOUNT
BC	Collins, Brendan	31.00	\$8,525.00
KOL	Little, Kristine O	38.10	\$10,477.50
TSS	Smith, Toni S.	0.25	\$31.25
DPS	Street, David P.	18.80	\$5,170.00

EXPENSES

5/10/2018	206	Westlaw	\$907.01
Total Expenses			<u>\$907.01</u>

Billing Summary for all Matters

Total professional services	\$24,203.75
Total expenses incurred	<u>\$907.01</u>
Total of new charges for this invoice	\$25,110.76
Plus net balance forward	<u>\$55,778.91</u>
Total balance now due (USD)	<u><u>\$80,889.67</u></u>

**Trust cash remaining balance is \$1,800.00

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	108684	3/16/2018	\$21,670.00	\$19,918.91
0999	108905	4/9/2018	\$31,918.63	\$27,252.50
0999	108935	5/2/2018	\$12,190.28	\$8,607.50

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

July 18, 2018

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 109573
Client # 102804
Billing through 6/30/2018

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$14,677.50	\$511.52	\$15,189.02

Current Charges	\$15,189.02
Trust Applied	\$1,800.00 ^{CR}
Balance Forward	\$69,219.67
Total Balance Now Due (USD)	<u><u>\$82,608.69</u></u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

July 18, 2018

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 109573
Client # 102804
Billing through 6/30/2018

Matter**0999 General Matters**

Balance forward as of invoice dated: 6/5/2018	\$80,889.67
Payments received since last invoice	\$11,670.00
Accounts receivable balance brought forward	<u>\$69,219.67</u>

Trust balance	\$1,800.00
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PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
6/1/2018	KOL	Review/analyze joint appendix. Submit for filing with the FMC.	1.30	275.00	\$357.50
6/4/2018	DPS	Draft reply brief.	2.50	275.00	\$687.50
6/4/2018	BC	Review correspondence from ALJ regarding Exhibits 2 and 3. Forward same to FMC. Draft Gallo Declaration. Communication with client regarding same. Edits to brief.	2.10	275.00	\$577.50
6/5/2018	DPS	Draft reply brief.	1.60	275.00	\$440.00
6/5/2018	BC	Communication with Mike Gallo regarding his Declaration. Edits to Declaration. Edits to Brief. Identifying supplemental exhibits.	2.40	275.00	\$660.00
6/6/2018	DPS	Draft reply brief.	3.10	275.00	\$852.50
6/6/2018	BC	Edits to Reply Brief. Review Joint Appendix. Identify documents from JA for brief. Review Gallo Declaration.	2.70	275.00	\$742.50
6/7/2018	DPS	Draft reply brief.	5.10	275.00	\$1,402.50
6/7/2018	KOL	Review/analyze filings for errata sheet pertaining to joint appendix.	2.00	275.00	\$550.00
6/8/2018	DPS	Conference with Brendan Collins regarding reply brief.	0.20	275.00	\$55.00

6/8/2018	BC	Edits to reply brief and response to statement of facts.	2.10	275.00	\$577.50
6/10/2018	BC	Edits to damage claim brief.	2.20	275.00	\$605.00
6/11/2018	DPS	Conference with Brendan Collins and Kristine Little regarding calculation of damages. Review and revise co-loading discussion. Review and revise discussion of origin and destination agents. Conference with Brendan Collins regarding reply brief.	1.60	275.00	\$440.00
6/11/2018	BC	Edits to brief regarding SBA's deficiencies in response to statements of fact. Revisions to damage claims.	2.30	275.00	\$632.50
6/11/2018	KOL	Communicate (in firm). Confer with B. Collins and D. Street.	0.50	275.00	\$137.50
6/11/2018	KOL	Manage data/files for exhibits. Review/analyze reply brief. Review documents. Draft/revise spreadsheets.	1.50	275.00	\$412.50
6/12/2018	DPS	Conference with Brendan Collins regarding reply brief.	0.10	275.00	\$27.50
6/12/2018	BC	Communications regarding numbers of bills of lading with NVO language on face. Edits to damages claim. Review damage charts and edits to same. Communications with Mike Gallo regarding clean declaration. Edits to briefs.	2.40	275.00	\$660.00
6/12/2018	KOL	Research pertaining to holding out. Draft/revise spreadsheets. Review/analyze airway bills.	2.60	275.00	\$715.00
6/12/2018	KOL	Communicate (in firm) with B. Collins.	0.30	275.00	\$82.50
6/13/2018	DPS	Review and revise reply brief. Multiple conferences with Brendan Collins and Kristine Little regarding damages calculations.	4.20	275.00	\$1,155.00
6/13/2018	BC	Review exhibits. Edits to brief. Reconcile amounts claimed in damages.	1.90	275.00	\$522.50
6/13/2018	KOL	Draft/revise spreadsheets. Manage exhibits. review reply brief.	2.80	275.00	\$770.00
6/14/2018	BC	Final edits to briefs.	1.10	275.00	\$302.50
6/14/2018	KOL	Manage data/files for filing.	0.70	275.00	\$192.50
6/14/2018	RJO	CMI v. SBA: Review and revise Joint Appendix citations in draft CMI Reply Brief per BC. Misc. discussions with BC and KL re same.	1.00	125.00	\$125.00
6/15/2018	BC	Finalize pleadings. Review errata.	0.90	275.00	\$247.50
6/15/2018	KOL	Manage data/files for filing with the FMC.	0.40	275.00	\$110.00
6/20/2018	BC	Communication regarding status of case with client.	0.50	275.00	\$137.50
6/21/2018	RJO	CMI v. SBA: Online research for case docket and pleadings. Incorporate Errata pages into Joint Appendix binder per BC.	0.70	125.00	\$87.50

6/25/2018	BC	Review correspondence from FMC.	0.30	275.00	\$82.50
6/28/2018	BC	Communication with opposing counsel regarding request to file additional pleadings.	0.40	275.00	\$110.00
6/29/2018	BC	Review SBA's surreply.	0.80	275.00	\$220.00
Total Fees					<u>\$14,677.50</u>

Timekeeper Summary		HOURS	AMOUNT
RJO	O'Flaherty, Regina J	1.70	\$212.50
BC	Collins, Brendan	22.10	\$6,077.50
KOL	Little, Kristine O	12.10	\$3,327.50
DPS	Street, David P.	18.40	\$5,060.00

EXPENSES

6/7/2018	206	The Descartes System Group	\$150.00
6/19/2018	200	Washington Express LLC	\$130.81
6/20/2018	206	Westlaw	\$182.03
6/29/2018	201	FedEx	\$48.68
Total Expenses			<u>\$511.52</u>

Billing Summary for all Matters

Total professional services	\$14,677.50
Total expenses incurred	<u>\$511.52</u>
Total of new charges for this invoice	\$15,189.02
Plus net balance forward	\$69,219.67
Less trust amount applied to this invoice**	\$1,800.00 CR
Total balance now due (USD)	<u><u>\$82,608.69</u></u>

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	108684	3/16/2018	\$21,670.00	\$8,248.91
0999	108905	4/9/2018	\$31,918.63	\$27,252.50
0999	108935	5/2/2018	\$12,190.28	\$8,607.50
0999	109239	6/5/2018	\$25,110.76	\$25,110.76

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

August 03, 2018

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 109823
Client # 102804
Billing through 7/31/2018

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$2,200.00	\$66.21	\$2,266.21

Current Charges	\$2,266.21
Balance Forward	\$70,690.06
Total Balance Now Due (USD)	<u><u>\$72,956.27</u></u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

August 03, 2018

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 109823
Client # 102804
Billing through 7/31/2018

Matter

0999 General Matters

Balance forward as of invoice dated: 7/18/2018	\$82,608.69
Payments received since last invoice	\$11,918.63
Accounts receivable balance brought forward	<u>\$70,690.06</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
7/2/2018	DPS	Review Surreply from SBA. Conference with Brendan Collins regarding same.	0.40	275.00	\$110.00
7/2/2018	BC	Review SBA reply. Communication with David Street regarding same.	1.10	275.00	\$302.50
7/2/2018	KOL	Review/analyze SBA's reply.	0.20	275.00	\$55.00
7/5/2018	DPS	Review SBA Motion to Strike CMI pleadings.	0.30	275.00	\$82.50
7/5/2018	BC	Review SBA's Motion to Strike or to Permit Surreply. Draft of opposition to same.	2.20	275.00	\$605.00
7/5/2018	KOL	Review/analyze motion to strike.	0.10	275.00	\$27.50
7/6/2018	DPS	Review and revise response to SBA's motion to strike.	0.10	275.00	\$27.50
7/6/2018	BC	Draft opposition to motion to strike.	2.30	275.00	\$632.50
7/9/2018	BC	Finalize and and file opposition to motion to strike.	1.00	275.00	\$275.00
7/9/2018	KOL	Review/analyze motion.	0.30	275.00	\$82.50
Total Fees					<u>\$2,200.00</u>

Timekeeper Summary

		HOURS	AMOUNT
BC	Collins, Brendan	6.60	\$1,815.00
KOL	Little, Kristine O	0.60	\$165.00
DPS	Street, David P.	0.80	\$220.00

EXPENSES

7/19/2018 206 Westlaw

\$66.21

Total Expenses

\$66.21

Billing Summary for all Matters

Total professional services	\$2,200.00
Total expenses incurred	<u>\$66.21</u>
Total of new charges for this invoice	\$2,266.21
Plus net balance forward	<u>\$70,690.06</u>
Total balance now due (USD)	<u><u>\$72,956.27</u></u>

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	108684	3/16/2018	\$21,670.00	\$8,248.91
0999	108905	4/9/2018	\$31,918.63	\$15,333.87
0999	108935	5/2/2018	\$12,190.28	\$8,607.50
0999	109239	6/5/2018	\$25,110.76	\$25,110.76
0999	109573	7/18/2018	\$15,189.02	\$13,389.02

**5. Response to SBA's
Supplemental
Memorandum -
2/05/2019 to 2/08/2019**

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

March 11, 2019

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 111325
Client # 102804
Billing through 2/28/2019

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$395.00	\$81.08	\$476.08

Current Charges	\$476.08
Balance Forward	\$53,753.77
Total Balance Now Due (USD)	<u><u>\$54,229.85</u></u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

March 11, 2019

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 111325
Client # 102804
Billing through 2/28/2019

Matter**0999 General Matters**

Balance forward as of invoice dated: 2/5/2019	\$53,753.77
Payments received since last invoice	\$0.00
Accounts receivable balance brought forward	<u>\$53,753.77</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
2/2/2019	BC	Review correspondence from Las Freight to FMC.	0.20	275.00	\$55.00
2/5/2019	BC	Review supplemental memorandum filed by respondent.	0.80	275.00	\$220.00
2/6/2019	KOL	Enter notice of appearance; Review notice of appearance document; submit for filing.	0.20	300.00	\$60.00
2/7/2019	KOL	Review reply brief.	0.20	300.00	\$60.00
Total Fees					<u>\$395.00</u>

Timekeeper Summary

		HOURS	AMOUNT
BC	Collins, Brendan	1.00	\$275.00
KOL	Little, Kristine O	0.40	\$120.00

EXPENSES

2/19/2019	200	Washington Express, LLC	\$81.08
Total Expenses			<u>\$81.08</u>

Billing Summary for all Matters

Total professional services	\$395.00
Total expenses incurred	\$81.08
Total of new charges for this invoice	<u>\$476.08</u>
Plus net balance forward	\$53,753.77

Total balance now due (USD)**\$54,229.85**

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	108684	3/16/2018	\$21,670.00	\$3,582.78
0999	108935	5/2/2018	\$12,190.28	\$8,607.50
0999	109239	6/5/2018	\$25,110.76	\$25,110.76
0999	109573	7/18/2018	\$15,189.02	\$13,389.02
0999	109823	8/3/2018	\$2,266.21	\$2,266.21
0999	110351	11/5/2018	\$275.00	\$275.00
0999	110571	12/5/2018	\$440.00	\$440.00
0999	111046	2/5/2019	\$82.50	\$82.50

**6. Initial Decision and
Responses to SBA's
Exceptions -
04/23/2019 to 08/02/2019**

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

May 07, 2019

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 111642
Client # 102804
Billing through 4/30/2019

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$55.00	\$0.00	\$55.00

Current Charges	\$55.00
Balance Forward	\$54,229.85
Total Balance Now Due (USD)	<u>\$54,284.85</u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

May 07, 2019

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 111642
Client # 102804
Billing through 4/30/2019

Matter**0999 General Matters**

Balance forward as of invoice dated: 3/11/2019	\$54,229.85
Payments received since last invoice	\$0.00
Accounts receivable balance brought forward	<u>\$54,229.85</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
4/23/2019	BC	Communication with FMC regarding extension of time for issuance of decision.	0.20	275.00	\$55.00
Total Fees					<u>\$55.00</u>

Timekeeper Summary

		HOURS	AMOUNT
BC	Collins, Brendan	0.20	\$55.00

Billing Summary for all Matters

Total professional services	\$55.00
Total expenses incurred	\$0.00
Total of new charges for this invoice	<u>\$55.00</u>
Plus net balance forward	\$54,229.85
Total balance now due (USD)	<u><u>\$54,284.85</u></u>

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	108684	3/16/2018	\$21,670.00	\$3,582.78
0999	108935	5/2/2018	\$12,190.28	\$8,607.50
0999	109239	6/5/2018	\$25,110.76	\$25,110.76
0999	109573	7/18/2018	\$15,189.02	\$13,389.02

0999	109823	8/3/2018	\$2,266.21	\$2,266.21
0999	110351	11/5/2018	\$275.00	\$275.00
0999	110571	12/5/2018	\$440.00	\$440.00
0999	111046	2/5/2019	\$82.50	\$82.50
0999	111325	3/11/2019	\$476.08	\$476.08

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

June 05, 2019

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 111848
Client # 102804
Billing through 5/31/2019

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$670.00	\$0.00	\$670.00

Current Charges	\$670.00
Balance Forward	\$54,284.85
Total Balance Now Due (USD)	<u><u>\$54,954.85</u></u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

June 05, 2019

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 111848
Client # 102804
Billing through 5/31/2019

Matter**0999 General Matters**

Balance forward as of invoice dated: 5/7/2019	\$54,284.85
Payments received since last invoice	\$0.00
Accounts receivable balance brought forward	<u>\$54,284.85</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
5/24/2019	BC	Review ALJ decision.	0.50	275.00	\$137.50
5/25/2019	BC	Communication with client regarding Initial Decision.	0.30	275.00	\$82.50
5/28/2019	BC	Review ALJ decision. Communication with client regarding same. Review attorney fee provisions.	0.70	275.00	\$192.50
5/28/2019	KOL	Confer with B. Collins; review documents; research regarding attorney's fees.	0.40	300.00	\$120.00
5/30/2019	BC	Communication regarding extension of time to appeal Initial Decision. Review filing as to same.	0.50	275.00	\$137.50
Total Fees					<u>\$670.00</u>

Timekeeper Summary	HOURS	AMOUNT
BC Collins, Brendan	2.00	\$550.00
KOL Little, Kristine O	0.40	\$120.00

Billing Summary for all Matters

Total professional services	\$670.00
Total expenses incurred	\$0.00
Total of new charges for this invoice	<u>\$670.00</u>
Plus net balance forward	<u>\$54,284.85</u>
Total balance now due (USD)	<u><u>\$54,954.85</u></u>

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	108684	3/16/2018	\$21,670.00	\$3,582.78
0999	108935	5/2/2018	\$12,190.28	\$8,607.50
0999	109239	6/5/2018	\$25,110.76	\$25,110.76
0999	109573	7/18/2018	\$15,189.02	\$13,389.02
0999	109823	8/3/2018	\$2,266.21	\$2,266.21
0999	110351	11/5/2018	\$275.00	\$275.00
0999	110571	12/5/2018	\$440.00	\$440.00
0999	111046	2/5/2019	\$82.50	\$82.50
0999	111325	3/11/2019	\$476.08	\$476.08
0999	111642	5/7/2019	\$55.00	\$55.00

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

July 03, 2019

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 112057
Client # 102804
Billing through 6/30/2019

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$357.50	\$0.00	\$357.50

Current Charges	\$357.50
Balance Forward	\$42,764.57
Total Balance Now Due (USD)	<u><u>\$43,122.07</u></u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

July 03, 2019

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 112057
Client # 102804
Billing through 6/30/2019

Matter**0999 General Matters**

Balance forward as of invoice dated: 6/5/2019	\$54,954.85
Payments received since last invoice	\$12,190.28
Accounts receivable balance brought forward	<u>\$42,764.57</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
6/3/2019	BC	Communication with client regarding SBA appeal.	0.30	275.00	\$82.50
6/5/2019	BC	Review Commission order extending time to appeal.	0.20	275.00	\$55.00
6/10/2019	BC	Communications regarding settlement.	0.20	275.00	\$55.00
6/21/2019	BC	Review settlement offer from SBA.	0.60	275.00	\$165.00
Total Fees					<u>\$357.50</u>

Timekeeper Summary		HOURS	AMOUNT
BC	Collins, Brendan	1.30	\$357.50

Billing Summary for all Matters

Total professional services	\$357.50
Total expenses incurred	\$0.00
Total of new charges for this invoice	<u>\$357.50</u>
Plus net balance forward	\$42,764.57
Total balance now due (USD)	<u><u>\$43,122.07</u></u>

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	109239	6/5/2018	\$25,110.76	\$25,110.76
0999	109573	7/18/2018	\$15,189.02	\$13,389.02

0999	109823	8/3/2018	\$2,266.21	\$2,266.21
0999	110351	11/5/2018	\$275.00	\$275.00
0999	110571	12/5/2018	\$440.00	\$440.00
0999	111046	2/5/2019	\$82.50	\$82.50
0999	111325	3/11/2019	\$476.08	\$476.08
0999	111642	5/7/2019	\$55.00	\$55.00
0999	111848	6/5/2019	\$670.00	\$670.00

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

August 02, 2019

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 112251
Client # 102804
Billing through 7/31/2019

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$10,972.50	\$135.66	\$11,108.16

Current Charges	\$11,108.16
Balance Forward	\$43,122.07
Total Balance Now Due (USD)	<u><u>\$54,230.23</u></u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

August 02, 2019

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 112251
Client # 102804
Billing through 7/31/2019

Matter**0999 General Matters**

Balance forward as of invoice dated: 7/3/2019	\$43,122.07
Payments received since last invoice	\$0.00
Accounts receivable balance brought forward	<u>\$43,122.07</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
7/2/2019	KOL	Review CMI exceptions to the initial decision; edit exceptions for filing; review prior filings; review and edit citations in the exception filing.	2.60	300.00	\$780.00
7/3/2019	BC	Communications regarding basis for exceptions to ALJ decision.	0.60	275.00	\$165.00
7/3/2019	KOL	Research cases regarding reimbursement for charges not listed in a published tariff; confer with B. Collins.	0.90	300.00	\$270.00
7/5/2019	BC	Edits to Exceptions to ALJ decision..	1.30	275.00	\$357.50
7/5/2019	KOL	Review CMI exceptions to the initial decision; edit exceptions for filing; review prior filings; review and edit citations in the exception filing; Confer with B. Collins.	0.80	300.00	\$240.00
7/8/2019	BC	Edits to exceptions. Communication regarding submittal of record to Commission.	0.60	275.00	\$165.00
7/8/2019	KOL	Review CMI exceptions to the initial decision; edit exceptions for filing; review prior filings; review and edit citations in the exception filing; Confer with B. Collins.	2.00	300.00	\$600.00
7/9/2019	BC	Final revisions to CMI Exceptions. Review SBA Exceptions.	1.30	275.00	\$357.50

7/9/2019	KOL	Review CMI exceptions to the initial decision; edit exceptions for filing; review prior filings; review and edit citations in the exception filing; confer with T. Smith; Confer with B. Collins; submit for filing.	2.10	300.00	\$630.00
7/10/2019	KOL	Confer with B. Collins pertaining to exceptions filed by SBA; Confer regarding reply to SBA exceptions.	0.30	300.00	\$90.00
7/17/2019	KOL	Draft brief replying to SBA exceptions.	0.20	300.00	\$60.00
7/18/2019	KOL	Draft brief replying to SBA exceptions.	0.30	300.00	\$90.00
7/19/2019	KOL	Review exceptions documents.	0.20	300.00	\$60.00
7/21/2019	KOL	Draft, edit and revise reply to exceptions of SBA.	2.70	300.00	\$810.00
7/22/2019	BC	Review draft reply to Exceptions.	1.30	275.00	\$357.50
7/22/2019	KOL	Revise and edit reply to exceptions; review cases; review initial decisions; review SBA exceptions; confer with B. Collins.	2.40	300.00	\$720.00
7/23/2019	KOL	Confer with B. Collins; revise and edit reply to exceptions.	1.80	300.00	\$540.00
7/24/2019	BC	Edits to reply brief.	1.90	275.00	\$522.50
7/24/2019	KOL	Revise and edit reply to exceptions; review cases; review initial decisions; review SBA exceptions; confer with B. Collins.	1.70	300.00	\$510.00
7/25/2019	BC	Edits to Reply brief.	1.10	275.00	\$302.50
7/25/2019	KOL	Revise and edit reply to exceptions; review cases; review initial decisions; review SBA exceptions; confer with B. Collins.	1.60	300.00	\$480.00
7/26/2019	KOL	Revise and edit brief; add citations to the brief; confer with T. Smith; email B. Collins.	1.20	300.00	\$360.00
7/28/2019	BC	Edits to reply brief.	2.90	275.00	\$797.50
7/30/2019	BC	Edits to Reply Brief.	1.60	275.00	\$440.00
7/30/2019	KOL	Revise and edit reply to exceptions; draft additional section pertaining to ALJ findings; review cases; review initial decisions; review SBA exceptions; confer with B. Collins.	1.80	300.00	\$540.00
7/31/2019	BC	Finalize reply brief.	0.90	275.00	\$247.50
7/31/2019	KOL	Revise and edit brief; confer with T. Smith; confer with B. Collins.	1.60	300.00	\$480.00
				Total Fees	\$10,972.50

Timekeeper Summary

		HOURS	AMOUNT
BC	Collins, Brendan	13.50	\$3,712.50
KOL	Little, Kristine O	24.20	\$7,260.00

EXPENSES

7/17/2019	200	Washington Express LLC	\$135.66
Total Expenses			<u>\$135.66</u>

Billing Summary for all Matters

Total professional services	\$10,972.50
Total expenses incurred	<u>\$135.66</u>
Total of new charges for this invoice	\$11,108.16
Plus net balance forward	<u>\$43,122.07</u>
Total balance now due (USD)	<u><u>\$54,230.23</u></u>

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	109239	6/5/2018	\$25,110.76	\$25,110.76
0999	109573	7/18/2018	\$15,189.02	\$13,389.02
0999	109823	8/3/2018	\$2,266.21	\$2,266.21
0999	110351	11/5/2018	\$275.00	\$275.00
0999	110571	12/5/2018	\$440.00	\$440.00
0999	111046	2/5/2019	\$82.50	\$82.50
0999	111325	3/11/2019	\$476.08	\$476.08
0999	111642	5/7/2019	\$55.00	\$55.00
0999	111848	6/5/2019	\$670.00	\$670.00
0999	112057	7/3/2019	\$357.50	\$357.50

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

September 10, 2019

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling , IL 60090

Invoice # 112532
Client # 102804
Billing through 8/31/2019

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$60.00	\$1,120.43	\$1,180.43

Current Charges	\$1,180.43
Balance Forward	\$54,230.23
Total Balance Now Due (USD)	<u><u>\$55,410.66</u></u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

September 10, 2019

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
555 Allendale Drive
Wheeling, IL 60090

Invoice # 112532
Client # 102804
Billing through 8/31/2019

Matter

0999 General Matters

Balance forward as of invoice dated: 8/2/2019	\$54,230.23
Payments received since last invoice	\$0.00
Accounts receivable balance brought forward	<u>\$54,230.23</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
8/2/2019	KOL	Confer with B. Collins; review FMC rules pertaining to filings.	0.20	300.00	\$60.00
Total Fees					<u>\$60.00</u>

Timekeeper Summary

		HOURS	AMOUNT
KOL	Little, Kristine O	0.20	\$60.00

EXPENSES

8/5/2019	200	Washington Express, LLC	\$80.54
8/7/2019	206	Westlaw	\$1,039.89
Total Expenses			<u>\$1,120.43</u>

Billing Summary for all Matters

Total professional services	\$60.00
Total expenses incurred	\$1,120.43
Total of new charges for this invoice	<u>\$1,180.43</u>
Plus net balance forward	\$54,230.23
Total balance now due (USD)	<u><u>\$55,410.66</u></u>

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
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0999	109239	6/5/2018	\$25,110.76	\$25,110.76
0999	109573	7/18/2018	\$15,189.02	\$13,389.02
0999	109823	8/3/2018	\$2,266.21	\$2,266.21
0999	110351	11/5/2018	\$275.00	\$275.00
0999	110571	12/5/2018	\$440.00	\$440.00
0999	111046	2/5/2019	\$82.50	\$82.50
0999	111325	3/11/2019	\$476.08	\$476.08
0999	111642	5/7/2019	\$55.00	\$55.00
0999	111848	6/5/2019	\$670.00	\$670.00
0999	112057	7/3/2019	\$357.50	\$357.50
0999	112251	8/2/2019	\$11,108.16	\$11,108.16

**7. Preparation of Petition
for Attorney's Fees -
07/26/2021 to 08/18/2021**

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

August 18, 2021

EIN # 52-2141671

CMI Distribution, Inc.
Jerry Starr
199 Shepard Ave
Wheeling , IL 60090

Invoice # 116739
Client # 102804
Billing through 8/18/2021

MATTER		FEES	EXPENSES	TOTAL BILL
0999	General Matters	\$7,370.00	\$0.00	\$7,370.00

Current Charges	\$7,370.00
Balance Forward	\$15,438.16
Total Balance Now Due (USD)	<u>\$22,808.16</u>

GKG Law, P.C.

1055 Thomas Jefferson Street
Suite 500
Washington, DC 20007

August 18, 2021

EIN #52-2141671

CMI Distribution, Inc.
Jerry Starr
199 Shepard Ave
Wheeling, IL 60090

Invoice # 116739
Client # 102804
Billing through 8/18/2021

Matter

0999 General Matters

Balance forward as of invoice dated: 5/5/2020	\$55,438.16
Payments received since last invoice	\$40,000.00
Accounts receivable balance brought forward	<u>\$15,438.16</u>

PROFESSIONAL SERVICES

			HOURS	RATE	AMOUNT
7/26/2021	BC	Review Commission decision. Forward same to client.	1.10	275.00	\$302.50
7/26/2021	KOL	Review FMC Commission decisions; confer with B. Collins review regulations regarding attorney's fees.	0.80	275.00	\$220.00
7/27/2021	BC	Communication with client regarding next steps in case; seeking attorneys' fees. Review procedures governing same.	0.70	275.00	\$192.50
7/27/2021	KOL	Review FMC rules regarding attorney's fees; review prior filings; confer with C. Engelbrecht.	0.50	275.00	\$137.50
8/2/2021	BC	Review invoices.	0.30	275.00	\$82.50
8/2/2021	BC	Communication with opposing counsel regarding payment and issuance of W-9.	0.20	275.00	\$55.00
8/4/2021	BC	Communication with client regarding W-9.	0.10	275.00	\$27.50
8/4/2021	KOL	Review prior FMC filings regarding attorney's fees; draft outline of attorney's fees petition; confer with C. Engelbrecht regarding petition.	1.20	275.00	\$330.00
8/6/2021	BC	Communication with client regarding payment and tax ID number.	0.20	275.00	\$55.00
8/9/2021	KOL	Outline fee petition; draft/revise fee petition.	2.20	275.00	\$605.00
8/10/2021	KOL	Edit and revise fee petition; research regarding fee petitions and purposes of the Shipping Act; review cases.	3.30	275.00	\$907.50

8/11/2021	KOL	Draft/revise fee petition; draft/revise declaration of B. Collins; review exhibits; review invoices; review prior FMC filings; review prior FMC fee petitions.	1.40	275.00	\$385.00
8/12/2021	BC	Review draft Petition for Attorneys' fees.	1.10	275.00	\$302.50
8/12/2021	KOL	Draft/revise fee petition; draft/revise declaration of B. Collins; review exhibits; review invoices; review prior FMC filings; review prior FMC fee petitions.	4.50	275.00	\$1,237.50
8/13/2021	BC	Edit to Petition; edit to Declaration in Support of Petition.	1.30	275.00	\$357.50
8/13/2021	KOL	Confer with B. Collins regarding the petition; review edits and comments from B. Collins regarding fee petition; edit and revise fee petition.	0.80	275.00	\$220.00
8/16/2021	BC	Communications regarding experts fees and exceptions to ID. Review invoices and eliminate Las Freight related charges.	0.90	275.00	\$247.50
8/16/2021	KOL	Conference with B. Collins regarding invoices from April 2017 to present; confer with C. Engelbrecht on removing time spent relating to Laufer; review invoices; review fee petition.	1.30	275.00	\$357.50
8/17/2021	BC	Further edits to Petition and Declaration.	0.30	275.00	\$82.50
8/17/2021	KOL	Edit and revise declaraiton of B. Collins; review Laffey matrix; research cases regarding fee petition award, which included time spent collecting attorney's fees; confer with C. Engelbrecht; review invoices and FMC docket; edit and revise fee petition; confer with B. Collins.	2.40	275.00	\$660.00
8/18/2021	BC	Finalize Petition and Declaration.	1.20	275.00	\$330.00
8/18/2021	KOL	Review, revise, and edit petiiton for attorney's fees; review exhibit A (Invoices); confer with B. Collins; confer with C. Engelbrecht.	1.00	275.00	\$275.00
				Total Fees	\$7,370.00

Timekeeper Summary		HOURS	AMOUNT
BC	Collins, Brendan	7.40	\$2,035.00
KOL	Little, Kristine O	19.40	\$5,335.00

Billing Summary for all Matters

Total professional services	\$7,370.00
Total expenses incurred	\$0.00
Total of new charges for this invoice	\$7,370.00
Plus net balance forward	\$15,438.16
Total balance now due (USD)	\$22,808.16

OUTSTANDING INVOICE SUMMARY

MATTER	INVOICE #	DATE	AMOUNT BILLED	BALANCE DUE
0999	109573	7/18/2018	\$15,189.02	\$13,389.02
0999	110351	11/5/2018	\$275.00	\$275.00
0999	110571	12/5/2018	\$440.00	\$440.00
0999	111046	2/5/2019	\$82.50	\$82.50
0999	111642	5/7/2019	\$55.00	\$55.00
0999	111848	6/5/2019	\$670.00	\$670.00
0999	112057	7/3/2019	\$357.50	\$357.50
0999	112251	8/2/2019	\$11,108.16	\$81.64
0999	112532	9/10/2019	\$1,180.43	\$60.00
0999	113997	5/5/2020	\$27.50	\$27.50

Exhibit B

LAFFEY MATRIX

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			Years Out of Law School *				
Year	Adjustmt Factor**	Paralegal/ Law Clerk	1-3	4-7	8-10	11-19	20 +
6/01/20- 5/31/21	1.015894	\$206	\$378	\$465	\$672	\$759	\$914
6/01/19- 5/31/20	1.0049	\$203	\$372	\$458	\$661	\$747	\$899
6/01/18- 5/31/19	1.0350	\$202	\$371	\$455	\$658	\$742	\$894
6/01/17- 5/31/18	1.0463	\$196	\$359	\$440	\$636	\$717	\$864
6/01/16- 5/31/17	1.0369	\$187	\$343	\$421	\$608	\$685	\$826
6/01/15- 5/31/16	1.0089	\$180	\$331	\$406	\$586	\$661	\$796
6/01/14- 5/31/15	1.0235	\$179	\$328	\$402	\$581	\$655	\$789
6/01/13- 5/31/14	1.0244	\$175	\$320	\$393	\$567	\$640	\$771
6/01/12- 5/31/13	1.0258	\$170	\$312	\$383	\$554	\$625	\$753
6/01/11- 5/31/12	1.0352	\$166	\$305	\$374	\$540	\$609	\$734
6/01/10- 5/31/11	1.0337	\$161	\$294	\$361	\$522	\$589	\$709
6/01/09- 5/31/10	1.0220	\$155	\$285	\$349	\$505	\$569	\$686
6/01/08- 5/31/09	1.0399	\$152	\$279	\$342	\$494	\$557	\$671
6/01/07-5/31/08	1.0516	\$146	\$268	\$329	\$475	\$536	\$645
6/01/06-5/31/07	1.0256	\$139	\$255	\$313	\$452	\$509	\$614
6/1/05-5/31/06	1.0427	\$136	\$249	\$305	\$441	\$497	\$598
6/1/04-5/31/05	1.0455	\$130	\$239	\$293	\$423	\$476	\$574
6/1/03-6/1/04	1.0507	\$124	\$228	\$280	\$405	\$456	\$549
6/1/02-5/31/03	1.0727	\$118	\$217	\$267	\$385	\$434	\$522
6/1/01-5/31/02	1.0407	\$110	\$203	\$249	\$359	\$404	\$487
6/1/00-5/31/01	1.0529	\$106	\$195	\$239	\$345	\$388	\$468
6/1/99-5/31/00	1.0491	\$101	\$185	\$227	\$328	\$369	\$444
6/1/98-5/31/99	1.0439	\$96	\$176	\$216	\$312	\$352	\$424
6/1/97-5/31/98	1.0419	\$92	\$169	\$207	\$299	\$337	\$406

6/1/96-5/31/97	1.0396	\$88	\$162	\$198	\$287	\$323	\$389
6/1/95-5/31/96	1.032	\$85	\$155	\$191	\$276	\$311	\$375
6/1/94-5/31/95	1.0237	\$82	\$151	\$185	\$267	\$301	\$363

The methodology of calculation and benchmarking for this Updated Laffey Matrix has been approved in a number of cases. See, e.g., *McDowell v. District of Columbia*, Civ. A. No. 00-594 (RCL), LEXSEE 2001 U.S. Dist. LEXIS 8114 (D.D.C. June 4, 2001); *Salazar v. Dist. of Col.*, 123 F.Supp.2d 8 (D.D.C. 2000).

* “Years Out of Law School” is calculated from June 1 of each year, when most law students graduate. “1-3” includes an attorney in his 1st, 2nd and 3rd years of practice, measured from date of graduation (June 1). “4-7” applies to attorneys in their 4th, 5th, 6th and 7th years of practice. An attorney who graduated in May 1996 would be in tier “1-3” from June 1, 1996 until May 31, 1999, would move into tier “4-7” on June 1, 1999, and tier “8-10” on June 1, 2003.

** The Adjustment Factor refers to the nation-wide Legal Services Component of the Consumer Price Index produced by the Bureau of Labor Statistics of the United States Department of Labor.